

**SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
SIGNATURE PAGE**

Abbott Laboratories (Singapore) Private Limited, a company incorporated in Singapore with a business address at 3 Fraser Street #23-28 Duo Tower, Singapore 189352, ("**Abbott**") and **FuturMaster Singapore Pte Ltd**, a company incorporated in Singapore under registration number **201110630K** with a business address at Fraser Tower 182 Cecil Street, #17-10, Singapore 069547, ("**Company**") enter into this Software as a Service Subscription Agreement as of August 1, 2025 ("**Effective Date**").

1. **Agreement.** This Software as a Service Subscription Agreement consists of the following (collectively, the "**Agreement**"):
 - (a) this Signature Page;
 - (b) the attached Terms and Conditions;
 - (c) the attached Exhibits:
 - (i) Exhibit 1 – Data Privacy
 - (ii) Exhibit 2 – Data Security
 - (iii) Exhibit 3 – Sample Subscription Services Order Form
 - (iv) Exhibit 4A – Support Services
 - (v) Exhibit 4B – Service Level Agreement
 - (vi) Exhibit 5 – Alternative Dispute Resolution
 - (vii) Exhibit 6 – Form of Companion Agreement
 - (viii) Exhibit 7 – Sample Statement of Work ("SOW")
 - (ix) Exhibit 8 – Travel and Expense Reimbursement Policy; and
 - (d) any executed Order Form(s) entered into pursuant to the Terms and Conditions and Exhibits.
2. **Order for Precedence.** The Agreement documents will have the following order of precedence (from highest to lowest): (a) the Terms and Conditions; (b) the Exhibits; and (c) the Order Form(s). In the event of a conflict between the terms of any Order Form and the terms of the Terms and Conditions or the applicable Exhibits, the terms of the Terms and Conditions, or the applicable Exhibit shall prevail, except with respect to statements regarding the description, scope, and timing of Subscription Services and/or Professional Services to be provided under such Order Form, in which case the terms of the Order Form shall prevail. If the Parties agree to any exceptions in a particular Order Form, such exceptions will apply only for purposes of such Order Form and will not be deemed to in any way to amend, modify, cancel, or waive the provisions of this Agreement or any other Order Form.
3. **Notices.** Unless otherwise expressly set forth in this Agreement, any notices required or permitted under this Agreement shall be in writing, shall refer specifically to this Agreement, and shall be sent by recognized national or international overnight courier, or registered or certified mail, postage prepaid, return receipt requested, or delivered by hand to the below addresses for the applicable recipient. Notices under this Agreement will be deemed to be duly given: (a) two (2) days after deposit with a recognized national or international overnight courier; (b) on the delivery date indicated in the return receipt for registered or certified mail; or (c) when delivered by hand. A Party may change its contact information immediately upon written notice to the other Party in the manner provided in this **Section 3**.

If to Company:

Futurmaster Singapore Pte Ltd
Fraser tower 182 Cecil Street, #17-10,
Singapore 069547
Phone: +6596365003

with a copy to:

Insert Name
Insert Address
Phone: Insert #

If to Abbott:

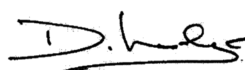
Global Procurement
Abbott Laboratories (S) Pte Ltd
3 Fraser Street #23-28, DUO Tower
Singapore 189352

with a copy to:

Regional Legal Counsel
Abbott Laboratories (S) Pte Ltd
3 Fraser Street #23-28, DUO Tower
Singapore 189352

Each of Abbott and Company has caused this Agreement to be executed by its duly authorized representative.

Abbott Laboratories (Singapore) Private Limited

Signature: 
Printed Name: Davin Lodge
Title: IT Director
Date: 28 Jul 2025

FuturMaster Singapore PTE LTD

Signature: 
Printed Name: Yacine.Zeroual
Title: CEO
Date: 21/07/2025

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT TERMS AND CONDITIONS

This Agreement sets forth the terms by which Company agrees to provide SaaS Subscription Services to Abbott. Company and Abbott shall be individually referred to herein as a “Party” and collectively as the “Parties”.

WHEREAS, Company is in the business of providing SaaS Subscription Services (as defined below) to customers;

WHEREAS, Abbott may purchase such SaaS Subscription Services from Company; and

WHEREAS, Company agrees to provide the foregoing to Abbott, subject to the terms and conditions of this Agreement.

NOW, THEREFORE, in exchange for valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties hereto agree as follows:

4. Definitions. In addition to the terms defined in this Agreement, the following terms shall have the meanings set forth below:

- (a) “Abbott Data” means all data, materials, information, or other content, in any form or medium, collected, downloaded, or otherwise received, directly or indirectly, by or through the Services. Abbott Data (i) includes any data, materials, information, or other content generated or derived from or based on (including de-identified and de-attributed data) the aforementioned data, materials, information, or other content; (ii) AI Inputs; and (iii) AI Outputs. Abbott Data may include Personal Information.
- (b) “Affiliate” means, with respect to a Party, a corporation or any other entity that directly, or indirectly through one or more intermediaries, controls, is controlled by, or is under common control with, such Party. As used herein, the term “control” means possession of direct or indirect power to order or cause the direction of the management and policies of a corporation or other entity whether (i) through the ownership of more than fifty percent (50%) of the voting securities of the other entity, or (ii) by contract, Law(s) or otherwise.
- (c) “AI Inputs” means hard prompts (often referred to as prompt design, or prompt-templates), tunable soft prompts (various prompt-tuning methods that adjust trainable parameters appended to the frozen model) or other prompt strategies or inputs provided by, or on behalf of, Abbott that are used with any Services (including any Software, Updates, and/or Deliverables in connection therewith) or any system, application, or tool, provided or used by Company under this Agreement that incorporate or utilize AI.
- (d) “AI Machine Learning” means the branch of AI that uses data and algorithms to learn from patterns in data and make predictions and draw inferences, gradually improving accuracy and allowing models to generalize beyond explicitly programmed cases or instructions. This may have a human-in-the-loop or be completely automated.
- (e) “AI Outputs” means any content, data, materials, learnings, insights, outcome, or output generated or returned through or in relation to Abbott’s use of any Services (including any Software, Updates, and/or Deliverables in connection therewith) or any system, application, or tool, provided or used by Company under this Agreement that incorporate or utilize AI including, but not limited to: (A) modifications, upgrades, or enhancements to Abbott Data, (B) developed or modified outputs, software, formulas, algorithms, models, processes, and methods, and (C) all manuals, training materials, and documentation relating to any of the foregoing.
- (f) “Application Platform” means the Software and/or website, including all modules, functions, and features identified in an Order Form, the Documentation, or otherwise generally made available by Company to its customers, and all technology resources and infrastructure (e.g., hardware, third party software, etc.) supporting the Application Platform. The “Application Platform” includes all Updates to the Application Platform.
- (g) “Artificial Intelligence” or “AI” means engineered, machine-based, or other technology that can, for a given set of objectives or inputs, generate outputs, including, without limitation, predictions, inferences, recommendations, insights, or decisions influencing real or virtual environments, or text, images, audio, video, code, or other media resembling human-created content, or any tool that utilizes AI Machine Learning.
- (h) “Claim” means any actual or threatened dispute, claim, action, lawsuit, or proceeding which arises out of or relates to this Agreement. A Claims includes, without limitation, a Government Authority enforcement action.
- (i) “Companion Agreement” means an agreement entered into by an Abbott Affiliate and Company (or a Company Affiliate) pursuant to **Section 5(b)** of this Agreement and in the form set forth in **Exhibit 6** (Form of Companion Agreement).
- (j) “Company Personnel” means the employees, Subcontractors, individual independent contractors, agents, and other representatives of Company and its Subcontractors who perform any of the obligations of Company under this Agreement.
- (k) “Data Security Breach” means: (i) any breach of security resulting in (A) unauthorized or accidental loss, alteration, disclosure, access, acquisition of, or destruction of Abbott Data; or (B) compromise, intrusion, interference with or unauthorized access to the networks, systems, databases, servers, or electronic or other media and/or other information assets or information systems on which Abbott Data is stored, collected, or used or from which Abbott Data may be accessed, including those of a Company agent or Subcontractor; and/or (ii) other circumstance that actually compromises, is reasonably suspected of compromising, or could compromise, (A) the privacy, data security, confidentiality, availability, resiliency, or (B) the integrity of any Abbott Data or the proper functioning of the network resources or systems of Abbott.

- (l) "Deliverable" means an electronic or tangible work product and any modifications, enhancements or derivative works thereof, commissioned by Abbott that Company is required to deliver to Abbott under an Order Form or otherwise delivers or makes available to Abbott in connection with or as part of the Professional Services.
- (m) "Documentation" means all technical manuals, instructions, and other materials, in whatever form, describing the technical and functional specifications and operational characteristics of the Subscription Services, including, but not limited to, any aspect of the installation, configuration, integration, operation, use, support or maintenance thereof.
- (n) "Eligible Entities" means any divested or spun-off Abbott Affiliate and entities acquiring all or part of Abbott or an Abbott Affiliate(s).
- (o) "Fees" means the fees payable to Company, as set forth in an Order Form and this Agreement, applicable to the Subscription Services and/or Professional Services.
- (p) "Government Authority" means a legislature, executive, administrative or regulatory entity, judicial body, supervisory authority, or other public agency or authority of any country, state, territory, international or multinational governmental entity (e.g., the European Union), or of any political subdivision of a country, state, territory, international or multinational governmental entity, or a person or entity acting under a grant of authority from, or under contract with, such public agency or authority, that is authorized by law to enforce individual rights with respect to Personal Information, or to oversee or monitor compliance with applicable Law(s) relating to privacy, data protection, or data security.
- (q) "Law(s)" means any applicable constitution, treaty, statute, regulation, order, directive, law, administrative guidance, judgment, decision, or agreement, whether with, of, or by any legislative, administrative, judicial, or other Government Authority, including any Privacy Government Authority (as defined in **Exhibit 1** (Data Privacy)), as well as all generally applicable industry or self-regulatory standards.
- (r) "Losses" means all damages, losses, liabilities, costs, fees and expenses including, without limitation, payment of court costs and reasonable attorneys' fees which arise out of or relate to this Agreement.
- (s) "Malicious Code" means viruses, worms, time bombs, Trojan horses and other harmful or malicious code, files, scripts, agents, or programs.
- (t) "Mobile Application" means the application provided by Company either through an online application store, a Company website, or other method of download, where such application is intended to be loaded onto a mobile device for use in conjunction with Application Platform.
- (u) "Order Form" means the document identifying the Services to be delivered by Company and the Fees to be paid by Abbott, substantially in the form attached as **Exhibit 3** (Sample Subscription Services Order Form).
- (v) "Personal Information" means any information that identifies, relates to, describes, is capable of being associated with, or could reasonably be linked, directly or indirectly, to any natural person, household, or device in the care, custody, or control of Company or a third party on Company's behalf that was (i) provided to Company in connection with the Services; or (ii) Processed in the course of Company's performance of the Services. The term Personal Information includes "Personal Data", "Nonpublic Personal Information", and similar terms as defined under Law(s).
- (w) "Processing" (including "Process", "Processes", or "Processed") means any operation or set of operations that is performed upon Abbott Data or on sets of Abbott Data, whether or not by automated means, such as collection, recording, organization, structuring, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.
- (x) "Professional Services" means the installation, implementation, configuration, training, and other professional services performed by Company in connection with the Application Platform, as more fully described in an Order Form.
- (y) "SaaS Subscription Services" or "Subscription Services" means the software-as-a-service product(s) specified in an Order Form, and as further described in the Documentation, provided by Company on a subscription basis which includes: (i) access and use rights to the Application Platform and the Mobile Application (if applicable); (ii) hosting services; and (iii) Support Services.
- (z) "Services" means, collectively, Subscription Services and Professional Services.
- (aa) "Software" means any proprietary applications or software that Company provides or makes available to Abbott as part of the Services.
- (bb) "Statement of Work" or "SOW" means the documentation describing the Professional Services and Deliverables to be provided by Company to Abbott under this Agreement, substantially in the form of Exhibit 7 - Sample Statement of Work.
- (cc) "Subcontractor" means any third party, or any Affiliate of Company, with whom Company contracts or arranges to provide all or a portion of the Subscription Services to be provided by Company hereunder, including, without limitation, hosting services, or with whom Company shares Abbott Confidential Information or otherwise directly or indirectly provides access to Abbott Confidential Information.
- (dd) "Subscription Services Start Date" means the date specified in an Order Form for the commencement of the Subscription Services.
- (ee) "Subscription Services Term" means the term of the Subscription Services identified in the applicable Order Form, in each case, including all renewals and any Termination Assistance Period.

- (ff) "Support Services" means the support services provided by Company in accordance with **Exhibit 4A** (Support Services) and the Order Form.
- (gg) "Updates" means all new releases, versions, enhancements, updates, corrections, patches, bug fixes, workarounds, maintenance releases, new point releases, major version releases, regardless of the version name or number, or other modifications to the Software that are distributed, designed, developed, or created by or for Company, including that (i) add new features, functionality and/or improved performance regardless of the Software being renamed, (ii) operate on new or other databases, operating systems or client or server platforms, (iii) add new foreign language capabilities or (iv) enhancements. Updates include any Documentation released, provided, or otherwise made available with Updates.
- (hh) "User(s)" means: (i) Abbott and Abbott Affiliates (present and future); (ii) third party service providers, including any systems integrators, outsourcing vendors, and other third parties performing services for, or on behalf of, Abbott and/or any Abbott Affiliate; and (iii) any employees, representatives, contractors and/or agents of the entities identified in subsections (i) and (ii).
- (ii) "Value Added Reseller(s)" or "VAR(s)" means a third party that has been approved by Abbott to resell or distribute Subscription Services to Abbott and Abbott Affiliates.
- (jj) "Vendor Assessment" means the evaluation of Company's data privacy and data security practices that may be performed by, or on behalf of, Abbott.

5. Eligible Entities and Abbott Affiliates.

- (a) For purposes of this provision, an "Eligible Entity" shall mean any divested business unit or legal entity formerly affiliated with Abbott that, as of the date of divestiture, was receiving services under this Agreement and is not an existing client of the Company at the time of divestiture. Any such entity that is already a client of the Company prior to the divestiture shall be expressly excluded from the scope of this clause.
- (b) From time to time, Abbott may divest lines of business and/or entities. In such cases, for up to twenty-four (24) months after the closing date of such divestiture, Company shall provide to the Eligible Entity all of the Subscription Services and any Professional Services Company is obligated to provide to Abbott under the Order Forms entered into pursuant to this Agreement in accordance with the terms of this Agreement. The cumulative Fees to provide the Services and any Professional Services to Abbott and the Eligible Entity will be equal to the Fees that would have been charged without the divestiture.
- (c) Any Abbott Affiliate may procure Subscription Services and Professional Services from Company under the terms and conditions of this Agreement and any such Abbott Affiliate shall be deemed to be "Abbott" when entering into an Order Form, subject to the following:
 - (i) To the extent requested by any Abbott Affiliate, Company (or any Affiliate of Company designated by Company for such purpose) shall enter into a Companion Agreement with mutually acceptable terms and conditions that are not inconsistent with the spirit and intent of this Agreement.
 - (ii) To the extent requested by any Abbott Affiliate, Company (or any Affiliate of Company designated by Company for such purpose) shall enter into an Order Form; it being understood that an Abbott Affiliate and Company (or any Affiliate of Company) may enter into an Order Form regardless of whether such parties have entered into a Companion Agreement.
 - (iii) Company shall invoice such Abbott Affiliate for Subscription Services and Professional Services performed pursuant to any such Order Form, and such Abbott Affiliate will pay such invoice in accordance with the terms of this Agreement and the applicable Order Form.
 - (iv) Each such Abbott Affiliate requesting Subscription Services and Professional Services will be solely liable for all obligations in connection with such Services and Company (and any Affiliate of Company) shall not have any rights or recourse of any nature whatsoever against Abbott or any of Abbott's other Affiliates in connection therewith. Company shall remain responsible and liable for the acts and omissions of its Affiliates entering into any Companion Agreement or Order Form.

6. Grant of Rights and Licenses to the Application Platform.

- (a) Subject to the terms and conditions contained in this Agreement, Company grants to Abbott and Abbott Affiliates, a worldwide, royalty free, non-exclusive, non-transferable (except in connection with an assignment pursuant to **Section 25** (Assignment)), and non-revocable right during the Subscription Services Term for Users to access and use (together, "Use") the Application Platform.
- (b) Unless expressly provided otherwise, Company will be responsible for: (i) hosting, operating, maintaining, and supporting the Application Platform; (ii) providing Support Services at no additional charge to Abbott; (iii) making available and implementing Updates; and (iv) providing disaster recovery and business continuity capabilities in accordance with industry standards and the BC/DR Plan as defined and set forth in **Exhibit 2** (Data Security). Company will furnish all equipment, computer programs, resources and services necessary for furnishing the Subscription Services to Abbott and Users, except as expressly provided otherwise in this Agreement.
- (c) Subject to the terms and conditions contained in this Agreement, Company grants to Abbott and Abbott Affiliates a worldwide, royalty free, non-exclusive, non-transferable (except in connection with an assignment pursuant to **Section 25** (Assignment)),

and non-revocable license to reproduce the Documentation as reasonably necessary to support internal Use of the Application Platform during the Subscription Services Term.

7. Mobile Application License Grant. Subject to the terms and conditions contained in this Agreement, by downloading or using a Mobile Application, Company grants to Abbott and Abbott Affiliates a non-revocable, worldwide, non-exclusive, non-transferable (except in connection with an assignment pursuant to **Section 25** (Assignment)), fully paid up license for Users to download, install and Use the Mobile Application during the Subscription Services Term on a mobile device that Users own, control, or are authorized to use by Abbott.
8. Subscription Services Start Date. The Subscription Services shall be made available to Abbott on the Subscription Services Start Date.
9. Users. If applicable, the number of Users shall be specified in an Order Form. User accounts may be reassigned to new Users replacing former Users who no longer require Use of the Subscription Services. Unless otherwise specified in an Order Form, (a) additional Users may be added; (b) the term of the additional User subscriptions shall be coterminous with the Subscription Services Term in effect at the time the additional Users are added; and (c) pricing for the additional User subscriptions shall be the same as that for the pre-existing Order Form Subscription Services Term, prorated for the remainder of the Order Form Subscription Services Term in effect at the time the additional Users are added.
10. Support Services. During the Subscription Services Term, Company shall provide Abbott and Users with technical support for the Application Platform, and if applicable, the Mobile Application, in accordance with **Exhibit 4A** (Support Services) and the Order Form. Any updates to the Support Services after the Subscription Services Start Date will not materially diminish any of Company's obligations or Abbott's rights under this Agreement and the applicable Order Form.
11. Professional Services. Abbott may retain Company to perform Professional Services and prepare Deliverables, in each case as described in a Statement of Work (SOW) agreed upon and entered into by the Parties from time to time. Company agrees to provide Professional Services and prepare Deliverables as follows:
 - (a) The Professional Services will be performed in a good and workmanlike manner consistent with applicable industry standards. Company shall correct non-conforming Professional Services (including Deliverables), in according with the conditions set in the Statement Of Work, at no additional charge to Abbott, and in the event Company fails to successfully correct the Professional Services (including Deliverables) within ten (10) days of receipt of written notice from Abbott detailing the breach, then Abbott shall be entitled to terminate the applicable Professional Services and receive a refund of any Fees paid for the non-conforming Professional Services (including Deliverables).
 - (b) Subject to **Section 11(c)** and **Section 11(d)** below, and unless otherwise provided in an Order Form, Company shall retain all rights, title, and interest in and to the Deliverables.
 - (c) Each Party will retain sole and exclusive ownership of its Confidential Information, technology, and any other intellectual property that existed prior to the effective date of an Order Form, or otherwise acquired or developed independently of this Agreement or an Order Form ("Pre-Existing Materials").
 - (d) Company grants to Abbott and Abbott Affiliates a non-revocable, worldwide, non-transferable (except in connection with an assignment pursuant to **Section 25** (Assignment)), and fully paid-up license during the Subscription Services Term to use the Deliverables with the Subscription Services.
 - (e) In addition to **Section 17** (Representations and Warranties) of these Terms and Conditions, Company represents and warrants to Abbott that:
 - (i) No Malicious Code will be knowingly or purposely transferred to Abbott or to Abbott Affiliates through the Professional Services, including, but not limited to, through the Deliverables or Company Pre-Existing Materials.
 - (ii) Company has the legal right to convey the licenses set forth in this **Section 11**.
12. Third Party Services. If the Subscription Services provides Abbott and Users with access to third party application programming interfaces, software development kits, or other similar tools that may be accessed by or through the Application Platform (each, a "Third Party Service") and such Third Party Service will be governed by a separate agreement between Abbott and the applicable third party provider, then Company shall provide a copy of the applicable governing terms and conditions for such Third Party Service in the Order Form or otherwise in writing for Abbott's review and acceptance prior to download or access of any Third Party Service(s) by Abbott or Users.
13. Artificial Intelligence. The terms of this **Section 13** shall apply to Company's use of AI in connection with, or incorporation in, the provision of Services and all other uses of AI by Company or Company Affiliates in connection with this Agreement.
 - (a) Restrictions on Use of AI.
 - (i) Artificial Intelligence is not and will not be used by Company in its performance under this Agreement or incorporated into the Services (including any Software, Updates, and/or Deliverables in connection therewith) or any system, application, software, or tool provided or used by Company under this Agreement, including, but not limited to, in the creation of any AI Outputs, in each case, unless and only to the extent authorized by Abbott in writing. Each approved use of AI shall be described in the applicable Order Form.
 - (ii) Notwithstanding anything to the contrary contained in this Agreement, unless expressly authorized in writing by Abbott, Abbott Data and Abbott Confidential Information will not be used to develop, train, re-train, fine-tune, or otherwise modify, enhance, or improve any AI system, application, software, or tool and will otherwise not be input into any AI system,

application, software, or tool. To the extent that the use of AI by Company has been approved by Abbott in the manner described herein, Company and Abbott shall mutually agree in writing to the parameters for such use of AI (including with respect to: (A) ownership of modifications, enhancements, and improvements to any AI system, application, software, or tool; and (B) any use of Abbott Data and Abbott Confidential Information. Company shall ensure Abbott Data and Abbott Confidential Information are not comingled or used outside the provision of Services to Abbott or the creation of any deliverables or work product for Abbott. Abbott expressly prohibits the use of Abbott Data and Abbott Confidential Information, including metadata, intentionally or unintentionally for any purpose other than to generate AI Outputs for Abbott and/or Abbott Affiliates (and only then if Abbott or the applicable Abbott Affiliate has expressly agreed in writing that Abbott Data and Abbott Confidential Information may be used to generate such AI Outputs for Abbott and/or Abbott Affiliates). Any learning (including transfer learning) or domain adaptation shall be solely for the benefit and use of Abbott and not to Company or any third party including, but not limited to, Company's other customers. Upon termination or expiration of this Agreement or the applicable Order Form, Company will cease all use of Abbott Data and Abbott Confidential Information (including AI Inputs and AI Outputs), and at Abbott's option shall promptly return to Abbott or destroy all Abbott Data and Abbott Confidential Information (including AI Inputs and AI Outputs).

- (iii) Company represents and warrants that with respect to any approved use of AI, Company has obtained all licenses, consents, and rights necessary to allow Abbott and Abbott Affiliates to use or license the AI and to own Abbott Data (including AI Inputs and AI Outputs) as further described in **Section 13(iv)** below.
- (b) **Security and Data Protection.** In addition to the other security and data protection requirements under this Agreement (including **Exhibit 1** (Data Privacy) and **Exhibit 2** (Data Security)), with respect to AI systems, applications, software, or tools or Company's use of AI in the provision of Services to Abbott and Abbott Affiliates, Company will maintain the following security and data protection programs.
 - (i) Company will maintain a written information program of policies, procedures, and controls that comply with and are aligned to applicable federal, state, local, and foreign privacy and security laws, rules, regulations, and standards governing the use of AI ("**AI Laws**"), and all applicable data privacy and data security standards including NIST (including, without limitation, Special Publication 800-66 Revision 2 and all amendments, replacements, and substitutions thereof), ISO 27001, and ISO 27018 standards, that govern the Processing, storage, transmission, and security of Abbott Data and Abbott Confidential Information and the use of AI to develop AI Outputs (the "**AI Security Program**"). The AI Security Program will follow a "Responsible AI" model that focuses on security, reliability, ethical, and fairness principles and shall conform to any AI governance policies and procedures that Abbott provides to Company in writing. Company shall diligently track current and emerging AI Laws, and promptly implement any necessary changes to the Services and use of AI in connection therewith, in order to comply with any changes to AI Laws; provided, however, that any material changes to the Services or changes relating to any use of AI previously approved by Abbott shall be subject to Abbott's prior written approval.
 - (ii) The AI Security Program will include reasonable and appropriate safeguards and Company will take technical, physical, and organizational precautions in line with the highest industry standards and ensure that Abbott Data and Abbott Confidential Information is not subject to unauthorized access or use, destruction, loss, or alteration by or disclosure to third parties.
- (c) **Process for Approval of Use of AI.** In the event Company desires to use AI in a manner otherwise prohibited by this Agreement, including this **Section 13**, Company shall seek Abbott's prior written approval, including providing to Abbott a detailed proposal describing the specific AI involved, the purpose and function of the AI, risk assessments conducted for the AI, known potential risks for the use of the AI, mitigation procedures that Company will establish and maintain for the use of the AI, data used in the AI, data privacy and data security impact assessments for use of the AI, audit and testing procedures, and other information reasonably requested by Abbott. Company's proposal shall be provided with full transparency to enable Abbott to meaningfully evaluate the use of AI by Company.
- (d) **Confidentiality.** Company agrees that Abbott's use of approved AI pursuant to this Agreement shall be considered Abbott's Confidential Information and subject to Company's confidentiality obligations in **Section 15** (Confidentiality).

14. **Compensation and Taxes.**

- (a) Company acknowledges and agrees that under no circumstances is Abbott responsible or liable to Company for any Fees prior to Company's receipt of an Abbott purchase order. Abbott will pay the Fees due within one hundred twenty (120) days of receipt of an accurate, complete, and undisputed invoice.
- (b) All invoices submitted by Company shall set forth (i) Order Form titles and contract numbers, if applicable; (ii) applicable purchase order number; (iii) applicable Abbott project manager; and (iv) the amount being billed. All invoices will be submitted by e-mail to SG_ALS_APIINV@abbott.com and must comply with the following requirements: (A) the subject line must start with the word "Invoice"; (B) invoices must contain a valid Abbott purchase order number; (C) only a single invoice per e-mail attachment (however an e-mail may contain multiple attachments); (D) invoice attachments may be in JPEG, TIFF, PDF or MSWord formats only (no ZIP files); (E) attachments must be to the body of the e-mail (no EML files); and (F) no images, company logos or links may be included with the e-mail text and invoice attachment. All inquiries, correspondence, statements, acknowledgements or other communication must be directed to SG ALS AP Help Desk, email to SG_ALS_APHD@abbott.com or contacts number at +603 7988 7219.
- (c) If Abbott receives an invoice which it reasonably believes includes a sum which is not valid and properly due:
 - (i) Abbott shall notify Company in writing no later than sixty (60) days from receipt of the invoice;

- (ii) Company shall provide such additional information and documentation as Abbott may reasonably require to enable it to evaluate the invoice;
- (iii) Abbott's failure to pay the disputed Fees shall not be deemed to be a breach of this Agreement, and Company must continue to perform its obligations under this Agreement;
- (iv) Upon receipt of Abbott's notice regarding disputed Fees, Company shall prepare and transmit to Abbott a modified invoice with all such disputed Fees removed from such invoice together with a separate invoice for the disputed amount; and
- (v) Upon receipt of such modified invoice containing only undisputed amounts, Abbott will pay the remaining, undisputed Fees in accordance with the terms of this **Section 14** and within one hundred twenty (120) days of Abbott's receipt of such modified invoice.
- (d) Unless otherwise specified in an Order Form, all amounts are in U.S. currency. There shall be no adjustment to the Fees to account for inflation. Company shall bear all currency risk, if applicable.
- (e) The Fees shall not increase during the initial Subscription Services Term and thereafter, if Abbott elects to renew the applicable Order Form, Company may propose an increase in such Fees. Such proposed increase must be negotiated by the Parties in good faith, with any resulting increase not exceeding the lesser of: (i) three (3%) percent or (ii) the annual percentage increase in the Consumer Price Index of Singapore for the published previous twelve (12) months. After the initial Subscription Services Term, any updates to the Fees shall be agreed upon by the Parties in writing at least one hundred twenty (120) days prior to the expiration of the then-current Renewal Term.
- (f) Company agrees to provide the same or lower Fees to all Abbott Affiliates under this Agreement. Any discounts for Fees shall be based upon the aggregate amount paid and payable by Abbott and Abbott Affiliates to Company and/or a VAR, as applicable, under this Agreement and all Companion Agreements and shall be recalculated annually by Company.
- (g) Each Party will be responsible, as required by Law(s), for identifying and paying all taxes that are imposed on that Party with respect to the transactions and payments under this Agreement. Company may charge and Abbott will pay applicable sales, use, value added and service taxes ("Indirect Taxes") that Company is legally obligated to collect from Abbott; provided, however, that Company will not collect, and Abbott will not pay to Company, any Indirect Taxes for which Abbott furnishes Company with an exemption certificate or a direct payment certificate for which Abbott may claim an available exemption from such Indirect Taxes. Notwithstanding any other language herein, where any payment payable by Abbott to Company pursuant to an Order Form is subject to any withholding or similar tax, Abbott shall be entitled to pay the applicable withholding or similar tax to the appropriate Government Authority and deduct the amount paid from the amount due to Company. Company (and any Company Affiliate entering into an Order Form) will provide all tax numbers and other assistance as may be reasonably requested by Abbott or any Abbott Affiliate in order to comply with all applicable tax compliance requirements.
- (h) In the event of a termination of this Agreement or an Order Form, Company shall refund all pre-paid Fees within thirty (30) days from the effective date of termination for Services not yet rendered.

15. Confidentiality.

- (a) Either Party may be given access to confidential and proprietary information ("Receiving Party") of the other Party ("Disclosing Party"). During the Term of this Agreement, including any extension thereof, and for a period of seven (7) years thereafter, the Receiving Party will not disclose to any third party or use such Confidential Information except as permitted in this Agreement and any Order Form without the prior written approval of the Disclosing Party; provided, however, that obligations of confidentiality and non-use with respect to any Confidential Information identified as a trade secret, either orally or in writing, will survive for so long as such information remains a trade secret under applicable Law(s). "Confidential Information" means: (i) the existence and terms of this Agreement and (ii) all information provided hereunder in writing, orally, visually and/or in another form or medium or any information seen or heard while on the premises of the other Party, including, without limitation, information relating to products (including development or production), customers, suppliers, data, processes, prototypes, samples, plans, marketing plans, reports, forecasts, software (including source code), financial information, research, research results, strategies, and trade secrets. Notwithstanding the foregoing, but excluding any Personal Information, Confidential Information shall not include information that was: (w) previously known to the Receiving Party, as evidenced by written records, without an obligation of confidentiality; (x) independently developed by or for the Receiving Party, as evidenced by written records, without use or any other processing of the Confidential Information; (y) acquired by the Receiving Party from a third party which is not, to the Receiving Party's knowledge, under an obligation of confidentiality with respect to such information; or (z) which is or becomes publicly available through no breach of this Agreement by the Receiving Party.
- (b) The Receiving Party may only use or disclose Confidential Information in accordance with this Agreement. Each Party agrees to protect and secure the confidentiality of the Confidential Information of the other Party with the same degree of care that it accords its own proprietary and confidential information, but in no event shall either Party exercise less than reasonable care. The Receiving Party may disclose Confidential Information to its employees and other persons under its supervision that are operating within its organization, who (i) have a legitimate "need to know" to accomplish the contemplated purposes; (ii) are informed by the Receiving Party of the confidential nature of the Confidential Information; and (iii) are obligated to protect such Confidential Information pursuant to terms and conditions not less restrictive than those contained in this Agreement. Further, Company agrees that Abbott may disclose Company's Confidential Information to Abbott's Affiliates under the terms and conditions of this **Section 15**, provided Abbott remains primarily liable for its Affiliates'

compliance with such terms and conditions. The Receiving Party shall not duplicate any material containing Confidential Information except in the direct performance of its obligations under this Agreement. The Receiving Party shall promptly notify the Disclosing Party of any misuse or misappropriation of Confidential Information. The Receiving Party shall return or destroy all copies of materials containing Confidential Information upon the reasonable request of the Disclosing Party or upon any earlier termination of this Agreement for any reason whatsoever.

- (c) The Receiving Party may disclose Confidential Information of the Disclosing Party as required to comply with any Law(s). In such case, the Receiving Party shall, except where prohibited by Law(s), notify the Disclosing Party promptly in writing within at least ten (10) days of the receipt of the disclosure request or such shorter time as necessary to allow the Disclosing Party to take whatever action it deems necessary to protect its Confidential Information. In connection with such a disclosure request, the Receiving Party shall comply with all lawful directions of the Disclosing Party, limit the nature and scope of the requested disclosure to the extent permitted by Law(s), disclose the minimum amount of Confidential Information necessary to comply with Law(s), and, upon the Disclosing Party's request, cooperate fully with the Disclosing Party in resisting the disclosure request to the full extent permitted by Law(s).
- (d) Each Party acknowledges that, in the event of any breach of this **Section 15**, the Disclosing Party may suffer damages that are not easily determinable, and shall be entitled to seek equitable relief, including an injunction or an order for specific performance, in addition to all other remedies available to the Disclosing Party at law or in equity.

16. Abbott Data.

- (a) All Abbott Data (including AI Inputs and AI Outputs) is, shall be, and shall remain the property of Abbott. Notwithstanding anything to the contrary contained in this Agreement and without limiting the foregoing, Company does not acquire any right, title or interest, express or implied, in or to Abbott Data and intellectual property rights therein by reason of Processing Abbott Data. Company disclaims all rights to Abbott Data, other than those rights expressly granted in this Agreement and will assert no claim (copyright or otherwise) to its use, development, and/or production. Without Abbott's written approval, Abbott Data shall not be: (i) sold, assigned, leased, or otherwise provided to third parties by Company or Subcontractors; or (ii) commercially exploited by or on behalf of Company or Subcontractors. Company hereby irrevocably assigns, transfers, and conveys, and shall cause Company Personnel to assign, transfer, and convey, to Abbott without further consideration, all of its and their right, title, and interest in and to Abbott Data.
- (b) Company may access and use Abbott Data solely as contemplated by this Agreement, and as necessary to provide the Services in accordance with this Agreement and each Order Form, and not for any other purpose, or in any other manner. Company shall not give any third party access to Abbott Data, except Company Personnel subject to **Section 16(d)** below, unless specifically instructed by Abbott in writing to do so. Company may disclose Abbott Data as required by Law(s) or a Government Authority in which case Company shall, except where prohibited by Law(s): (i) notify Abbott promptly in writing and no later than five (5) business days from the date of receipt of a disclosure request and (ii) cooperate fully with Abbott in responding to any such disclosure request. If Abbott is unable, or chooses not to oppose the disclosure request, Company shall comply with all lawful directions of Abbott, limit the nature and scope of the requested disclosure, disclose the minimum Abbott Data necessary to comply with Law(s), and upon Abbott's request, cooperate fully with Abbott in resisting the disclosure request to the fullest extent permitted by Law(s).
- (c) Company and/or any Subcontractor may not access or use Abbott Data for its own commercial benefit or that of any third party, unless agreed to in writing by Abbott.
- (d) Company shall be fully responsible and liable for all acts or omissions of any Company Personnel, including breaches of this Agreement caused by any Company Personnel. Company shall ensure, including by execution and enforcement of written contracts, that all Company Personnel take reasonable and appropriate steps to protect the security, privacy, integrity, and confidentiality of Abbott Data (such steps, at a minimum, shall ensure the same level of protection as required of Company under this Agreement).
- (e) During each Subscription Services Term, and until the return or secure destruction of Abbott Data that Company and/or Subcontractors obtained in connection with the Agreement, Company shall implement and maintain, and shall cause Subcontractors to implement and maintain, the security measures set forth in **Exhibit 2** (Data Security).
- (f) To the extent Company and/or its Subcontractors Process (as defined in **Exhibit 1** (Data Privacy)) Personal Information for, or on behalf of, Abbott, Company agrees on behalf of itself and its Subcontractors to: (i) comply with the terms and conditions set forth in **Exhibit 1** (Data Privacy) and (ii) implement and maintain the security measures set forth in **Exhibit 2** (Data Security).
- (g) Company shall, and shall cause Subcontractors to, upon the occurrence of any data loss, promptly restore lost, damaged, or inaccurate Abbott Data and promptly correct any errors or inaccuracies (not caused by Abbott) in any output or reports delivered to Abbott under this Agreement.
- (h) Company acknowledges that, in the event of any breach of this **Section 16**, Abbott may suffer damages that are not easily determinable, and shall be entitled to seek equitable relief, including an injunction or an order for specific performance, in addition to all other remedies available to Abbott at law or in equity.

17. Representations and Warranties.

- (a) Each Party hereby represents and warrants to the other that: (i) it has the full right, power and corporate authority to enter into this Agreement and to make the promises set forth in this Agreement and to carry out the transactions contemplated hereby; (ii) the execution, delivery, and performance of this Agreement and the consummation of the transactions

contemplated hereby have been duly authorized by all requisite corporate (or, as applicable, other entity) action on the part of such Party; (iii) this Agreement has been duly executed and delivered by such Party and (assuming the due authorization, execution, and delivery hereof by the other Party) is a valid and binding obligation of such Party and enforceable against it in accordance with its provisions; and (iv) its entry into this Agreement does not violate or constitute a breach of any agreement to which it is a party or otherwise bound.

(b) Company covenants, represents, and warrants to Abbott that:

- (i) (A) Company has and will maintain all necessary rights, title, licenses, permissions, and approvals required to grant the rights and licenses to the Subscription Services as set forth in this Agreement; (B) except as set forth in an Order Form, the Subscription Services (or any components thereof) are not subject to any third party licenses that bind Abbott to any terms and/or restrictions that are not set forth in this Agreement; (C) the Application Platform will be compatible with the Abbott systems contemplated in the applicable Order Form; (D) as of the Subscription Services Start Date (and also on the date(s) of any Update(s)) there is no claim, litigation, or proceeding pending, or to the best of Company's knowledge, threatened against Company with respect to the Subscription Services (including, without limitation, any AI, AI training data and AI Outputs) and/or any component thereof alleging infringement, misappropriation, or violation of any intellectual property rights of any third party; and (E) the Services, and access and use of the foregoing as contemplated by this Agreement, do not violate any Law(s).
- (ii) In providing the Services, performing its obligations, and exercising its rights under this Agreement, Company shall comply (and shall require Company Personnel involved in Company's performance under this Agreement to comply) with all Law(s), relating to or affecting this Agreement or the work to be performed by Company hereunder.
- (iii) The Application Platform shall not contain any non-conformities, material errors, or defects, or otherwise fail to operate in material compliance with the applicable Documentation and as otherwise required under the applicable Order Form. The foregoing warranty shall apply to each delivery of the Application Platform, and if applicable, the Mobile Application, hereunder, including any and all Updates delivered by, or on behalf of, Company hereunder. If Abbott notifies Company of any breach of the foregoing warranty, Company shall correct or replace the non-conformity at no additional cost or expense to Abbott. If Company is unable to correct or replace the non-conformity within ten (10) days of its receipt of the notice (email acceptable), a material breach of the Agreement by Company shall be deemed to have occurred.
- (iv) Company has provided Abbott all Documentation for the Subscription Services, and that such Documentation is detailed and complete and accurately describes the functional and operational characteristics of the Subscription Services. Company further represents and warrants that it will provide to Abbott updated versions of the Documentation as soon as an updated version becomes generally available, and that all such updated Documentation will be complete and accurately describe the then-current functional and operational characteristics of the Subscription Services.
- (v) Except for the functions and features expressly disclosed in the Documentation, the Subscription Services do not contain, and Company shall not insert into the Subscription Services, any Malicious Code or other software code that may: (A) lock, disable, or erase the Application Platform or any Abbott Data; (B) limit or prevent full use of the Application Platform as permitted under this Agreement; (C) harm or otherwise interfere with Abbott's servers or data processing hardware (including terminals, auxiliary storage, and communication and peripheral devices); (D) require action or intervention by Company or any other person to allow use of the Application Platform as permitted under this Agreement; or (E) contain any functionality or any undocumented data use cases or hidden features or functions, not set out in the Documentation or not permitted by this Agreement, without the prior written consent from Abbott.
- (vi) To the extent that the Application Platform is used in conjunction with a web browser or similar generic client software, no plug-in or additional components are required for effective use of the Application Platform.
- (vii) Abbott may, at any time during a Subscription Services Term, extract all Abbott Data stored in the Application Platform in a usable, non-proprietary format, or as otherwise agreed to by the Parties.
- (viii) Company shall meet or exceed the service levels as set forth in **Exhibit 4A** (Support Services) and **Exhibit 4B** (Service Level Agreement).
- (ix) The information provided to Abbott in any Vendor Assessment is true, accurate, and complete.
- (x) The Subscription Services have been designed, developed, and tested according to generally accepted industry practices to appropriately safeguard Abbott Data against unauthorized access and/or interference by third parties, intrusion, theft, destruction, loss, or alteration.
- (xi) Company is able to implement and maintain the technical and organizational measures required by this Agreement (including, **Exhibit 2** (Data Security)) and Law(s) for the protection of Abbott Data.
- (xii) With respect to Company's use of AI approved by Abbott in accordance with **Section 13** (Artificial Intelligence) Above, Company has obtained all rights needed from any third party AI provider to grant ownership in the Abbott Data (including AI Inputs and AI Outputs) to Abbott as provided in **Section 16** (Abbott Data) above.
- (xiii) Neither Company, nor any of its Affiliates, agents, Subcontractors, or employees (including investigators and sub-investigators, as applicable) performing services under this Agreement are or have within the past five (5) years been (A) Debarred, Disqualified, or Excluded, (B) proposed to be so restricted by any government agency, or (C) convicted of an offense or had a civil judgment rendered from which they may be so restricted. "Debarred, Disqualified, or Excluded" means prohibited, suspended, or otherwise limited or deemed ineligible under any Law(s) from (W) providing

services to the holder of an FDA-approved or pending drug application, (X) participating in clinical research, (Y) participating in or furnishing goods or services for any government program, or (Z) participating in any government procurement or non-procurement program. Company will notify Abbott immediately of any breach of this warranty or if it learns of any investigation or proceeding that could result in any such restrictions. Upon receipt of notice Abbott may elect to immediately terminate this Agreement.

18. Term and Termination.

- (a) The term of this Agreement shall commence on the Effective Date and shall continue for three (3) years (the “Initial Term”), unless terminated earlier or extended in accordance with this Agreement.
 - (b) Upon the expiration of the Initial Term, this Agreement will renew for additional one (1) year periods (each such period, a “Renewal Term”) on the same terms and conditions hereof. The Initial Term together with any Renewal Term are collectively referred to as the “Term”.
 - (c) The initial Subscription Services Term will begin on the date set forth in the applicable Order Form and continue for the Subscription Services Term specified in such Order Form. For purposes of clarity, the initial Subscription Services Term may be for multiple years if specified in the applicable Order Form.
 - (d) Abbott may terminate this Agreement, or any Order Form in whole or in part, at its discretion and for any reason or no reason, by providing thirty (30) days’ prior written notice to the Company. Any such termination shall be carried out in accordance with the exit terms specified in the applicable Order Form.
 - (e) Either Party may terminate this Agreement, or all or part of any Order Form, immediately upon written notice to the other Party in the event of a material breach by the other Party of any provision of this Agreement or an Order Form that remains uncured thirty (30) days following receipt of notice of such breach from the non-breaching Party.
 - (f) Either Party may terminate this Agreement or any Order Form immediately upon written notice to the other Party if the other Party (i) files in any court or agency pursuant to a petition in bankruptcy or insolvency for reorganization or arrangement or for the appointment of a receiver or trustee of that Party or its assets under applicable Law(s); (ii) proposes a written agreement of composition or extension of its debts; (iii) is served with an involuntary petition against it, filed in any insolvency proceeding, and such petition has not been dismissed within sixty (60) days after the filing thereof; (iv) proposes to be a party to any dissolution or liquidation; (v) makes an assignment for the benefit of its creditors; or (vi) is unable to pay its debts as they fall due in the general course.
 - (g) Termination or expiration of any Order Form shall have no impact on the continuing validity and effect of any other Order Form, unless and to the extent each such Order Form is terminated as described elsewhere in this **Section 18**.
 - (h) Termination or expiration of this Agreement or all or part of any Order Form shall not affect any rights or obligations which have accrued prior to the termination effective date, or any other rights or remedies provided at law or equity which either Party may otherwise have. If the Subscription Services Term of any Order Form or Companion Agreement extends beyond the termination or expiration of this Agreement, the applicable terms and conditions of this Agreement will extend automatically for purposes of such Order Form or Companion Agreement until termination or expiration of such Order Form or Companion Agreement.
 - (i) Under no circumstances may Company suspend or terminate Abbott’s or any Abbott Affiliate’s Use of the Application Platform or receipt of the Professional Services or Support Services other than pursuant to a permitted termination of this Agreement or all or part of an Order Form in accordance with this **Section 18** and, in each such case, only after expiration of the Termination Assistance Period.
19. Termination Assistance Services. If all or part of an Order Form is terminated for any reason, or expires, Company shall, at Abbott’s request, provide the termination assistance services as described in this **Section 19** (“Termination Assistance Services”) for a period of up to twenty-four (24) months from the effective date of termination or expiration (“Termination Assistance Period”). The Termination Assistance Services period shall begin on the termination date or expiration date of the Order Form and be provided in a manner consistent with the terms and conditions of this Agreement and the applicable Order Form. The Termination Assistance Services include, at Abbott’s election, continued Use of the Application Platform (including the receipt of Support Services), and if applicable, the Mobile Application, being terminated or expired, on a paid basis in accordance with the Fees set forth in the applicable Order Form. As part of the Termination Assistance Services, Company shall cooperate with Abbott to: (a) transfer, export, migrate, or retrieve Abbott Data from the Application Platform to another system or service designated by, or on behalf of, Abbott; and (b) minimize any interruption to Abbott’s access to the Application Platform, and if applicable, the Mobile Application, during the Termination Assistance Period.
20. Audit Rights. Company shall keep such books and records as to readily disclose the basis for any charges billed to Abbott for the Subscription Services and Professional Services (collectively, “Contract Records”) and shall make them available for examination and audit by Abbott and its agents prior to and for a period of five (5) years after receipt by Company of final payment for the Subscription Services and/or Professional Services, or for so long as required by Law(s), whichever is longer. Any refund due Abbott shall be calculated based on the actual overcharge found relating to the Subscription Services and/or Professional Services and invoices audited for the audit period in question. Any necessary adjustments for overpayment shall be immediately refunded by check to Abbott. Further, Company shall maintain, and shall keep Contract Records in accordance with (i) generally accepted accounting principles for the applicable jurisdiction applied on a consistent basis and (ii) Abbott’s record retention policy, as modified from time to time, and provided to Company in writing.

21. Indemnification.

- (a) The parties agree that any indemnification obligations shall be limited solely to direct damages arising from the breach, and shall expressly exclude any indirect, consequential, or special damages.
 - (b) Company shall, at its own cost and expense, defend, indemnify, and hold harmless Abbott and Abbott Affiliates and their respective directors, officers, employees, independent contractors, agents, successors, and assigns (each, an "Indemnified Party") from and against any and all third party Claims and Losses arising out of, related to, or alleging: (i) bodily injury or death, or damage to property caused by Company in the course of its performance under this Agreement; (ii) any infringement or misappropriation of any third party copyright, trademark, patent, trade secret, or other intellectual property right of any kind whatsoever, arising out of or relating to the Subscription Services (including, without limitation, any AI, AI training data and AI Outputs) or Professional Services (including any Deliverable), or any component thereof (each, an "Infringing Item"); (iii) Company's negligence, recklessness, willful misconduct, or intentional or wrongful conduct; (iv) any breach of Company's obligation to comply with Law(s); or (v) Company's breach of any term of this Agreement or an Order Form.
 - (c) If an Infringing Item provided by, or on behalf of, Company becomes the subject of a Claim under **Section 21(a)(ii)** above, or in Company's opinion is likely to become the subject of such a Claim, then Company shall, at its sole cost and expense: (i) promptly procure for Abbott and its Affiliates the right to continue using the Infringing Item pursuant to this Agreement; (ii) if the action described in (i) is not possible, even after Company's best efforts, promptly replace or modify the Infringing Item to make it non-infringing, while maintaining equivalent functionality or (iii) if the actions described in (i) and (ii) are not possible after Company's best efforts, promptly replace the Infringing Item with a Subscription Service or Professional Services (including any Deliverable) that has equivalent functionality and is non-infringing.
 - (d) Notwithstanding any other provision in this Agreement, Company shall defend, indemnify, and hold harmless each Indemnified Party from and against any and all third party Claims and Losses, whether direct or indirect, incurred by an Indemnified Party related to or arising out of any breach of Company's data privacy or data security obligations under this Agreement or a Data Security Breach.
 - (e) Abbott may participate in the defense of any Claim under **Section 21(a)** or **Section 21(c)** at its option and in its sole discretion. Company shall not agree to any settlement or compromise that would be binding on Abbott or its Affiliates, or involves making an admission of guilt or wrongdoing, without Abbott's prior written consent.
22. Insurance. Company shall obtain and maintain for at least the duration of this Agreement, at its own cost and expense, the following kinds and amounts of insurance providing coverage for the operations of Company, Company's Affiliates, and Subcontractors:
- (a) Comprehensive General/Public Liability insurance, including contractual liability, providing coverage resulting from bodily injury, property damage, personal injury, and advertising injury. This insurance shall be on an occurrence basis with a minimum limit of USD 5,000,000 per occurrence; if coverage is written on a "claims made" basis, coverage for Abbott and its Affiliates shall be maintained in effect for at least six (6) years following termination of this Agreement;
 - (b) Auto Liability insurance covering the liability arising from the use of owned, non-owned, and/or hired vehicles with a minimum combined single limit of USD 2,000,000 per occurrence;
 - (c) Worker's Compensation and Occupational Injury and Disease insurance, or its equivalent, with statutory limits and Employer's Liability coverage with limits in accordance with Law(s) applying to the Agreement, or with a minimum limit of USD 1,000,000 per occurrence (where permitted by Law(s)), whichever is greater;
 - (d) Professional/Errors & Omissions Liability insurance with a minimum of USD 10,000,000 per claim, covering all acts, errors, omissions, negligence, and including infringement of intellectual property in the performance of services for Abbott or on behalf of Abbott hereunder. Company's policy should also include network risk/cyber coverage (including coverage for unauthorized access, failure of security, breach of privacy perils, as well as notification costs and regulatory defense). Such insurance shall be maintained for two (2) years after termination of this Agreement;
 - (e) Crime insurance including employee dishonesty coverage with a minimum limit of USD 1,000,000 per occurrence that includes "Clients Property" coverage for Abbott and its employees' money and property under Company's care, custody and control. Abbott, on behalf of itself and its employees, shall be included as a joint loss payee;
 - (f) The above required insurance policies shall be insured through licensed insurers authorized to do business and on policy forms approved for use in the jurisdiction of this Agreement and have a minimum A.M. Best financial rating (or equivalent rating agency outside of the U.S. if a carrier is not rated by A.M. Best) of "A-", size "IX". Unless otherwise stated, all policies shall (i) be primary and non-contributory to any other insurance available to Abbott; (ii) contain, with respect to requirements in **Section 22(a) – (c)** above, a waiver of rights of subrogation against Abbott, its Affiliates, and their respective officers, directors, employees, agents and appointed representatives; and (iii) include, with respect to requirements in **Sections 22(a)** and **22(b)** above, Abbott, its Affiliates, and their respective officers, directors, and employees as an additional insured; and
 - (g) Company shall furnish to Abbott on an annual basis a certificate of insurance signed by an authorized representative of Company's insurance company(s), giving evidence of such insurance in a form acceptable to Abbott. In the event of any notice or action to cancel, non-renew, or materially change the above-required insurance, Company shall provide Abbott thirty (30) days advance notice of such change. In the event Company fails to maintain the necessary insurance or provide such notices, which shall be a material breach of this Agreement, Abbott may opt to terminate this Agreement. The acceptance by Abbott of certificates of insurance providing for other or different coverage than herein required to be furnished, shall in no event be deemed to be a waiver of any provisions of this Agreement. Furthermore, the minimum limits

of liability or conditions required in this **Section 22** does not in any way limit any indemnity obligation or other liability of Company under this Agreement.

23. Force Majeure.

- (a) Any delay in or prevention of the performance of any of the duties or obligations of a Party caused by an event outside the affected Party's reasonable control shall not be considered a breach of this Agreement, and unless provided to the contrary herein, neither Party shall be liable for Losses resulting from such delay and the time required for performance shall be extended for a period equal to the period of such delay, but in no event longer than thirty (30) days. Such events shall include without limitation, acts of God; acts of the public enemy; terrorist acts; insurrections; riots; injunctions; embargoes; fires; explosions; floods; earthquakes; or other unforeseeable causes beyond the reasonable control, and without the fault or negligence, of the Party so affected (each, a "Force Majeure Event"). The Party affected by a Force Majeure Event shall give prompt written notice to the other Party and shall take whatever reasonable steps are necessary to relieve the effect of the Force Majeure Event as rapidly as reasonably possible. If a Party's performance is delayed or prevented for more than thirty (30) days by a Force Majeure Event, the other Party may terminate the affected Subscription Services, Professional Services, or all or part of the Order Form or this Agreement, upon written notice to the Party suffering the Force Majeure Event. For the avoidance of doubt, configuration changes, other changes to the Subscription Services, Malicious Code, or other errors or omissions introduced, or permitted to be introduced, by Company or labor shortages or strikes of Company Personnel that result in an outage or inability for Abbott to access or use the Subscription Services shall not constitute a Force Majeure Event.
- (b) Upon the occurrence of a Force Majeure Event that constitutes a "disaster" under Company's disaster recovery/business continuity plan, Company shall promptly implement, as appropriate, such disaster recovery/business continuity plan and provide disaster recovery and business continuity services. The occurrence of a Force Majeure Event shall not relieve Company of its obligation to implement the disaster recovery/business continuity plan and provide disaster recovery and business continuity services in accordance with **Section 9 of Exhibit 2** (Data Security).

24. Independent Contractors. The relationship of the Parties under this Agreement is that of independent contractors. Nothing contained in this Agreement is intended or is to be construed so as to constitute the Parties as partners, joint ventures, or one Party as an agent or employee of the other Party. Neither Party has any express or implied right under this Agreement to assume or create any obligation on behalf of, or in the name of, the other Party, nor to bind the other Party to any contract, agreement, or undertaking with any third party, and no conduct of a Party shall be deemed to imply such right.

25. Assignment. Company shall not directly or indirectly assign or transfer this Agreement or any Order Form (whether in whole or in part, including by operation of law or in connection with a merger, spin-off, division, consolidation, or sale of substantially all the assets of Company) without Abbott's prior written consent, which Abbott may withhold in its sole discretion, and any attempted assignment without Abbott's consent will be void. For purposes of clarity, any material change in the ownership or control of Company or any business unit or division of Company providing Subscription Services and/or Professional Services pursuant to this Agreement shall be deemed to be an assignment for which Abbott's prior consent is required. Any permitted assignee shall assume all obligations of Company under this Agreement; provided, however, that Company shall remain primarily liable for such obligations. Abbott may assign this Agreement without the consent of Company. This Agreement will be binding upon and inure to the benefit of the permitted assigns of each Party.

26. Subcontractors. Company shall not retain any Subcontractor or delegate any duty under this Agreement or any Order Form without the prior written consent of Abbott, which Abbott may withhold in its sole discretion. In the event Abbott provides such written consent, Company shall ensure that each approved Subcontractor shall: (a) be named in the applicable Order Form and (b) agree, by written contract with Company, to be bound by obligations no less onerous than the obligations set forth in this Agreement and the applicable Order Form. Nothing in this provision shall be construed to limit, remove, or compromise any right or remedy that Abbott may have, in law or in equity, against any Subcontractor or agent of Company. Company is fully liable and responsible for all acts and omissions of any Subcontractor, including breaches of this Agreement caused by a Subcontractor.

27. Abbott VAR(s) Program. If Abbott purchases Subscription Services and/or Professional Services from a VAR, the terms of this Agreement shall apply except for any terms related to payment and taxes which shall be negotiated solely by and between Abbott and such VAR.

28. No Claims. No Company Affiliate or Subcontractor may bring a claim arising out of or relating to this Agreement against Abbott or any Abbott Affiliate.

29. Governing Law, Venue and Dispute Resolution. This Agreement shall be governed by the Law(s) of the Republic of Singapore, without regard to its conflict of law principles. Subject to the Alternative Dispute Resolution procedures set forth in **Exhibit 5** (Alternative Dispute Resolution), for any legal action relating to this Agreement, the Parties consent to the exclusive jurisdiction and venue of the courts of the Republic of Singapore. The Parties hereby exclude application of the UN Convention on Contracts for the International Sale of Goods from this Agreement and any transaction between them related thereto.

30. Legal Discovery. Abbott is required to preserve and produce electronic data in support of its legal discovery obligations, as they may arise, for investigations and/or litigation. As part of the Subscription Services and Professional Services, Company shall cooperate with any legal discovery requests made by Abbott, including the dissemination of preservation requests, collection of data, back up of electronic information, and maintenance, retention and production of any such data. Company shall keep detailed records of its efforts to preserve data required for legal discovery.

31. Export Controls. Each Party shall be responsible for ensuring that its actions with respect to the Subscription Services are in compliance with the export control laws of the United States and other countries ("Export Control Laws"). Company shall

immediately notify Abbott in writing if the Subscription Services are or become subject to export control restrictions under any Export Control Laws, and shall provide Abbott with reasonable cooperation and information, at no additional cost or expense to Abbott, to assist Abbott in complying with any licensing or similar requirements that may be imposed under such Export Control Laws, including promptly furnishing to Abbott upon request any export control classification numbers applicable to the Subscription Services. Company covenants to Abbott that, as of the Effective Date, the Subscription Services are not subject to any export control restrictions under any Export Control Laws. Company further covenants that any export control classification numbers furnished by Company to Abbott shall be complete, accurate, and in accordance with any applicable Export Control Laws.

32. Miscellaneous.

- (a) Publicity. Company shall not disclose the existence or terms of this Agreement or any Order Form or use the name, trademarks, logos, trade names, or trade dress of Abbott or any Abbott Affiliate in any publicity, advertising, customer list, or website without the prior written consent of Abbott.
- (b) Headings. The headings of the articles and sections of this Agreement have been added for the convenience of the Parties and shall not be deemed part of, or to be used to interpret this Agreement.
- (c) Abbott Guidelines. Company shall adhere to all Abbott compliance guidelines and procedures including, but not limited to, the Abbott Guidelines posted on the Abbott website (currently <http://www.abbott.com/partners/suppliers.html>). In addition, Company shall notify Abbott key contacts of any situation that would cause Company to deviate from such guidelines and procedures.
- (d) Language. This Agreement and each Order Form shall be in the English language, unless otherwise agreed to by the Parties in writing.
- (e) Third Party Beneficiaries. Company acknowledges that Abbott Affiliates are intended third party beneficiaries of this Agreement.
- (f) Different/Additional Terms. By entering into this Agreement, Company waives all terms and conditions contained in its quotations, order acknowledgment form, order form, invoices or other documents and external sites (including, without limitation, acceptable usage policies) that are different from or additional to the terms and conditions set forth in this Agreement, and all such different or additional terms and conditions shall be null and void. The terms of this Agreement supersede and replace any terms in any shrink-wrap or click-through license agreement for any Subscription Services provided by Company. Abbott's receipt of any Subscription Services and Professional Services provided by Company hereunder and payment of any invoices are expressly made conditioned on Company's assent to the terms and conditions set forth in this Agreement and the applicable Order Form. This Agreement contains the entire agreement between the Parties, and supersedes all previous agreements, negotiations, discussions, writings, understandings, commitments and conversations with respect to the subject matter hereof.
- (g) Waivers. No waiver will be implied from conduct or failure to enforce rights. No provision of this Agreement shall be deemed waived unless such waiver is in writing and signed by the authorized representative of the Party against whom it is sought to be enforced. Waiver by either Party of any default by the other Party of any provision of this Agreement shall not be deemed a waiver by the waiving Party of any subsequent or other default. Any acceptance or payment of all or any part of the compensation for the Subscription Services by Abbott does not constitute a waiver of Abbott's rights.
- (h) Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original, and all of which together shall constitute one and the same agreement. Each Party acknowledges that an original signature or a copy thereof transmitted by e-mail or by PDF shall constitute an original signature for purposes of this Agreement. Either Party may execute this Agreement using electronic signatures.
- (i) Severability. If any provision of this Agreement is held or declared to be invalid or unenforceable, such provision will be ineffective only to the extent of such invalidity or unenforceability, without invalidating the remainder of such provisions or the remaining provisions of the Agreement.
- (j) Survival. All provisions of this Agreement that are by their nature intended to survive the expiration or termination of this Agreement or an Order Form, including without limitation, obligations with respect to indemnification, confidentiality, data protection and proprietary rights, shall survive such expiration or termination.
- (k) Amendments. This Agreement may only be amended by a written instrument executed by an authorized representative on behalf of each of the Parties hereto.
- (l) Non-Exclusivity. Nothing herein shall be deemed to preclude Abbott from retaining the services of other persons or entities undertaking the same or similar functions as those undertaken by Company hereunder.
- (m) Continued Performance. Each Party agrees to continue performing its obligations under this Agreement and each applicable Order Form during the pendency of any dispute and under no circumstances shall either Party remediate this Agreement or any Order Form, in whole or in part, or otherwise refuse to perform all or any portion of this Agreement or Order Form. Company expressly acknowledges and agrees that it shall not deny, withdraw, or restrict Abbott's access to Abbott Data.
- (n) Interpretation. Any use of the word "including" means "including without limitation". Unless otherwise specified in a particular case, the word "days" refers to calendar days.

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 1 – DATA PRIVACY

1. Data Privacy Exhibit. This Data Privacy Exhibit shall apply to the Processing of Personal Information by Company (and/or its Subcontractors) for, or on behalf of, Abbott (including Abbott Affiliates). To the extent not inconsistent with the terms of this Data Privacy Exhibit, the applicable provisions of the Agreement (including, without limitation, termination, governing law, and interpretation) shall apply to this Data Privacy Exhibit.

In the event of a conflict between this Data Privacy Exhibit and the body of the Agreement, the terms of this Data Privacy Exhibit shall control and govern. Abbott and Company, intending to be legally bound during the Term, and until the return, deletion, or destruction of all Personal Information that Company obtains in connection with the Agreement, hereby agree as follows:

2. Definitions. Capitalized terms used herein shall have the meanings set forth in this **Section 2** or in the Agreement. Lower case terms used but not defined in this Data Privacy Exhibit, such as “personal data”, “controller”, “processor” and “data subject”, shall have the meaning as set forth in Article 4 of the GDPR, irrespective of whether the GDPR applies.
- (a) “Applicable Law” shall mean any applicable constitution, treaty, statute, regulation, order, directive, law, administrative guidance, judgment, decision, or agreement, whether with, of, or by any legislative, administrative, judicial, or other government authority, including any Privacy Government Authority, as well as all generally applicable industry or self-regulatory standards.
 - (b) “EU Standard Contractual Clauses” (or “EU SCCs”) shall mean the contractual clauses issued pursuant to the EU Commission Implementing Decision (EU) 2021/914 of 4 June 2021 on standard contractual clauses for the transfer of personal data to third countries pursuant to Regulation (EU) 2016/679 of the European Parliament and of the Council.
 - (c) “Ordering Document” shall mean an Order Form, Statement of Work, purchase order, Companion Agreement, or other similar document which describes the Subscription Services and/or Professional Services to be provided by Company for the benefit of Abbott under the Agreement.
 - (d) “Personal Information” shall mean any information that identifies, relates to, describes, is capable of being associated with, or could reasonably be linked, directly or indirectly, to any natural person, household, or device in the care, custody, or control of Company or a third party on Company’s behalf that was (i) provided to Company in connection with the Services; or (ii) Processed in the course of Company’s performance of the Services. The term Personal Information includes “Personal Data”, “Nonpublic Personal Information”, and similar terms as defined under Applicable Law(s).
 - (e) “Privacy Government Authority” shall mean a legislature, executive, administrative or regulatory entity, supervisory authority (e.g., data protection agencies in the EU), judicial body, or other public agency or authority of any country, state, territory, international or multinational governmental entity (e.g., the European Union), or of any political subdivision of a country, state, territory, international or multinational governmental entity, or a person or entity acting under a grant of authority from, or under contract with, such public agency or authority, that is authorized by law to enforce individual rights with respect to Personal Information, or to oversee or monitor compliance with Applicable Law(s) relating to privacy, data protection, or data security.
 - (f) “Processing” (including “Process”, “Processes”, or “Processed”) shall mean any operation or set of operations that is performed on Personal Information or on sets of Personal Information, whether or not by automated means, such as collection, recording, organization, structuring, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.
 - (g) “Sale” (including “Selling”, “Sale”, or “Sold”) shall mean selling, renting, releasing, disclosing, disseminating, making available, transferring, or otherwise communicating orally, in writing, or by electronic or other means, a consumer’s Personal Information by the business to another business or a third party for monetary or other valuable consideration.
 - (h) “Share” (including “Sharing” and “Shared”) shall mean (i) sharing, renting, releasing, disclosing, disseminating, making available, transferring, or otherwise communicating orally, in writing, or by electronic or other means, a consumer’s Personal Information by the business to a third party for cross-context behavioral advertising, whether or not for monetary or other valuable consideration, including transactions between a business and a third party for cross-context behavioral advertising for the benefit of a business in which no money is exchanged.
 - (i) “Subcontractor” (including “Sub-processor”) shall mean any third party, including Company Affiliates, utilized by Company to Process Personal Information for, or on behalf of, Abbott.
 - (j) “UK Data Protection Law” shall mean the United Kingdom Data Protection Act 2018.
3. Processing of Personal Information by Company. When Company and/or its Subcontractors Process Personal Information for, or on behalf of, Abbott (including Abbott Affiliates), including in relation to the Services, in accordance with the Agreement and any Ordering Document, Company agrees:
- (a) To Process Personal Information only upon the documented instructions from Abbott as described in the Agreement and any Ordering Document, and solely for the purpose of providing the Services in accordance with the Agreement and not for any other purpose, or in any other manner, unless specifically instructed by Abbott in writing to do so, or as required by Applicable Law(s) or Privacy Government Authority. Such prohibited Processing includes, without limitation, de-identification or anonymization of Personal Information, or any use, disclosure, or other Processing of de-identified or anonymized data that was once Personal Information. Where Abbott expressly agrees in writing to allow Company to de-identify or anonymize Personal Information for Company’s own use, Company accepts all risk associated with improper, incomplete, or reversible

de-identification and anonymization of Personal Information. If Company reasonably believes that any Processing instruction violates Applicable Law(s), Company will immediately notify Abbott.

- (b) Except as provided in the Agreement or permitted by Applicable Law(s), neither Company nor any of its employees, agents, consultants, assigns, or Subcontractors shall (i) have any right to Process Personal Information for their own commercial benefit in any form (including, without limitation, to create de-identified or anonymized data); (ii) Share, Sell, retain, use or disclose Personal Information for any commercial purpose (including to provide services to any other person or entity) or outside of the direct business relationship between the Parties; or (iii) combine Personal Information received pursuant to the Agreement with Personal Information received from or on behalf of another person(s), or collected from Company's own interactions with individuals.
- (c) That, as between Abbott and Company, Abbott retains all right, title, and interest in and to the Personal Information. Company acquires no rights to the Personal Information other than to Process Personal Information to provide the Services.
- (d) That all Processing of Personal Information is subject to Company's confidentiality obligations under the Agreement and Company shall not disclose or transfer Personal Information to any third party without Abbott's prior express written consent, except where such disclosure or transfer is:
 - (i) to a Subcontractor, provided that, prior to such disclosure, the Subcontractor has (A) been approved in writing by Abbott and (B) entered into a written agreement with Company that provides for, in substance, the same data protection obligations as those binding on Company. Company must notify Abbott of all Subcontractors engaged as of the effective date of the Agreement and must thereafter notify Abbott at least thirty (30) days prior to appointing a new Subcontractor. Abbott may raise reasonable objections to a new Subcontractor in which case the Parties will negotiate in good faith to reach a mutually acceptable solution. If an acceptable solution is not reached within such thirty (30) day period, Abbott reserves the right to terminate the affected Subscription Services and/or Professional Services without penalty. Company will be responsible and liable for the acts and omissions of its Subcontractors to the same extent Company would be responsible and liable if performing the Subscription Services and/or Professional Services directly.
 - (ii) required by Applicable Law(s), or Privacy Government Authority, including, but not limited to, any inquiries, complaints, requests, claims, or notices of investigation or potential non-compliance received by Company in which case Company shall, except where prohibited by Applicable Law(s) (A) notify Abbott promptly in writing and within five (5) business days from the date of receipt of a disclosure request and (B) cooperate fully with Abbott in responding to any such inquiries, complaints, requests, claims, or notices of investigation or potential non-compliance received by Company. If Abbott is unable, or chooses not to oppose the disclosure request, Company shall comply with all lawful directions of Abbott, limit the nature and scope of the requested disclosure, disclose the minimum Personal Information necessary to comply with Applicable Law(s), and upon Abbott's request, cooperate fully with Abbott in resisting the disclosure request to the fullest extent permitted by Applicable Law(s).
- (e) That Company shall Process Personal Information only at the locations and/or geographies set out in the Agreement or Ordering Document and shall not change the locations and/or geographies without Abbott's prior written consent.
- (f) That Company shall, within two (2) business days, notify Abbott at privacy@abbott.com if it receives a data subject rights request related to Personal Information Processed for, or on behalf of, Abbott. Company shall not respond to any such request, unless and until expressly instructed to do so by Abbott. Company shall provide all reasonable assistance to Abbott to ensure Abbott is compliant with its obligation to respond to data subject rights requests under Applicable Law(s), including following any instructions from Abbott related to the Personal Information, such as deleting, correcting, or restricting the Processing of Personal Information Processed for, or on behalf of, Abbott in Company's possession, custody, or control in response to a data subject rights request and passing on any such instructions, as relevant, to Company's Subcontractors. If authorized by Abbott, such assistance may include responding to a data subject rights request in accordance with Applicable Law(s) and Abbott's explicit instructions.
- (g) If Abbott requests information from Company to fulfill its obligation to respond to a data subject rights request, Company shall provide the requested information in the requested format within three (3) business days of receiving Abbott's request for assistance. Company shall immediately notify Abbott if Company is unable to comply with the request for assistance or requires additional time to fulfill the request for information. Such notification shall provide an explanation as to why Company considers compliance with the request for assistance to be impracticable or requires more time, including how much additional time is required.
- (h) That if Company, or any third party acting on behalf of Company, provides Personal Information to Abbott, Company represents and warrants that such information will be provided in accordance with Applicable Law(s), and that Abbott may use, disclose, and otherwise Process such Personal Information without limitation unless Company specifies in writing any restrictions on Abbott's Processing of such Personal Information.
- (i) To maintain records of its Processing activities under the Agreement, which will include Company's name and contact details, the name and contact details of any Subcontractors, the categories of Personal Information Processed for, or on behalf of, Abbott, a description of any international data transfers conducted for, or on behalf of, Abbott (including a list of any countries to which Personal Information has been transferred), a general description of the administrative, technical and organizational measures used to safeguard Personal Information (including, for example, EU Standard Contractual Clauses), and any other information required by Applicable Law(s).

- (j) That nothing under Applicable Law(s) or under any other obligation owed by Company creates a conflict with or prevents Company from fulfilling its obligations under the Agreement, and in the event of any change, Company shall notify Abbott immediately, but no later than five (5) business days, after it makes a determination that it can no longer meet its obligations.
 - (k) To comply with all Applicable Law(s) with respect to Company's and its Subcontractors' performance and Processing of Personal Information in connection with the Agreement.
4. Oversight of Personnel.
- (a) Confidentiality. Company shall ensure that any persons authorized to Process Personal Information on Company's behalf are under an appropriate statutory or other legally binding obligation to maintain the confidentiality and security of the Personal Information. Company shall ensure such persons are informed of the confidential nature of the Personal Information and have received appropriate data privacy and security training on their responsibilities in accordance with Applicable Law(s) and industry standards. Company shall ensure that such confidentiality obligations survive the termination of such persons' engagement.
 - (b) Limitation of Access. Company shall utilize technical and physical access controls that implement the security principles of "segregation of duties" and "least privilege", to prevent unauthorized persons from Processing Personal Information, and ensure that Personal Information is accessible to and Processed only by individuals who reasonably need such access to undertake such Processing in order for Company to provide the Services.
5. Cross-border Transfers.
- (a) Company shall not engage in any cross-border Processing of Personal Information, or transmit, directly or indirectly, any Personal Information to any country outside of the country from which such Personal Information was collected, without the prior written consent of Abbott. To the extent Abbott consents to any such transfer, Company shall ensure that such international transfers are in compliance with Applicable Law(s). Where Company engages in an onward transfer of Personal Information, Company shall ensure that a lawful data transfer mechanism is in place prior to transferring Personal Information from one country to another.
 - (b) Company represents and warrants that it has in place and shall maintain in place throughout the Term and until the return, deletion, or destruction of Personal Information Company obtained in connection with the Agreement, all measures that may be required under Applicable Law(s) in order to legally permit the transfer of Personal Information, including allowing remote access to Personal Information to the locations and/or geographies specified in the Agreement or Ordering Document.
 - (c) Company shall, and Company shall cause its Subcontractors to, at Abbott's request, promptly enter into additional agreements, measures, or undertakings with Abbott, or any other party that Processes Personal Information in connection with the Agreement, such as international data transfer or data processing agreements, and Company shall ensure that all such agreements remain in force.
 - (d) Notwithstanding anything to the contrary in this Data Privacy Exhibit, to the extent the EU SCCs apply, nothing in this Data Privacy Exhibit or the Agreement shall be construed to prevail over any conflicting clause of the EU SCCs. Each Party acknowledges that it has had the opportunity to review the EU SCCs.
 - (e) Supplementary Measures. In addition to the obligations under **Section 5** (Cross-border Transfers) of this Data Privacy Exhibit, if and to the extent that the Parties will engage in cross-border Processing of Personal Information or will transmit, directly or indirectly, any Personal Information to a country outside of the country from which such Personal Information was collected (including, without limitation, transfers of Personal Information outside of the European Economic Area (EEA), Switzerland, or the United Kingdom), Abbott and Company agree to the following supplementary measures: the obligations in Modules 2 and 3 of Section III of the EU SCCs (Local laws and obligations in case of access by public authorities) shall form part of this Data Privacy Exhibit with respect to Personal Information subject to UK Data Protection Law, regardless of whether the rest of the EU SCCs apply to any Personal Information.
 - (f) Changes in Laws. If, for whatever reason, the transfer of Personal Information under the EU SCCs or other lawful data transfer mechanism, approved by the relevant Privacy Government Authority, ceases to be lawful or the additional safeguards are no longer effective, Abbott may, at its discretion, require Company to: (i) cease transfers of the Personal Information to, or access to such Personal Information from, the relevant jurisdictions; or (ii) promptly, and without insisting on conditions that are not legally required, cooperate with Abbott to facilitate use of an alternative lawful data transfer mechanism and alternative additional safeguards that will permit Abbott to continue to benefit from the Services in compliance with Applicable Law(s). If Abbott and Company are unable to promptly implement such an alternative data transfer mechanism or alternative additional safeguards, then Abbott may, at its option, upon written notice to Company, terminate the affected Services, suspend the transfer, or reduce the scope of such Services to exclude the Personal Information, at no additional cost to Abbott and without liability or penalty of any kind. Abbott shall receive a pro rata refund of any prepaid fees for the period following the effective date of termination or reduction in the scope of the Subscription Services and/or Professional Services.
6. Cooperation. Company shall make available to Abbott any information Abbott may require for purposes of demonstrating Company's or Abbott's compliance with obligations under Applicable Law(s). Such cooperation shall include, but is not limited to, assistance with respect to (a) data protection impact assessments, transfer impact assessments, and/or prior consultation with a Privacy Government Authority that may be required in respect of Processing carried out under the Agreement and (b) demonstrating compliance with Company's obligations under this Data Privacy Exhibit and allow for and contribute to audits, including inspections, conducted by Abbott or another auditor mandated by it in accordance with the Agreement.

7. Indemnification. Notwithstanding any other provision in the Agreement (including, without limitation, any warranty, financial cap, disclaimer of special/consequential damages or any other limitation or disclaimer of liability), Company shall defend, indemnify, and hold harmless each of the Indemnified Parties from and against any and all costs, charges, damages, expenses, fees (including, without limitation, reasonable attorneys' fees), and losses (including, without limitation, fees and costs incurred in recovering the same), incurred by any Abbott Indemnified Party related to or arising from a breach of any provision of this Data Privacy Exhibit by Company or a Subcontractor.
8. Survival. The obligations of confidentiality and data privacy under this Data Privacy Exhibit will survive the termination or expiration of the Agreement, including any Ordering Document thereunder. In addition, all remedies available to the Parties under this Data Privacy Exhibit or Applicable Law(s) shall survive the termination or expiration of the Agreement.

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 2 – DATA SECURITY

1. Data Security Exhibit. To the extent not inconsistent with the terms of this Data Security Exhibit, the applicable provisions of the Agreement (including, without limitation, termination, governing law, and interpretation) shall apply to this Data Security Exhibit. Capitalized terms not specifically defined herein shall have the meaning set forth in the Agreement. In the event of a conflict between this Data Security Exhibit the Agreement, the terms of this Data Security Exhibit shall control and govern.
2. Scope. In addition to the terms and conditions contained in the Agreement, the terms and conditions contained in this Data Security Exhibit shall apply where Company:
 - (a) Processes Abbott Data, including, but not limited to, where Company Processes Personal Information;
 - (b) provides hosting of an application, website, software, or system; and/or
 - (c) requires network connectivity to Abbott's network in connection with providing the Services.
3. Definitions. Capitalized terms used herein shall have the meanings set forth in this **Section 3** or in the Agreement.
 - (a) "Abbott Data" shall mean all data, materials, and information (including Personal Information) that resides in or is accessed from an application, website, software, or system that is provided, operated, supported, accessed, or used by or on behalf of Company (or Company Personnel) in connection with the Services. Abbott Data also includes any data, materials, and information derived from or based on the aforementioned data, materials, and/or information.
 - (b) "Applicable Law" shall mean any applicable constitution, treaty, statute, regulation, order, directive, law, administrative guidance, judgment, decision, or agreement, whether with, of, or by any legislative, administrative, judicial, or other Government Authority, including any privacy Government Authority, as well as all generally applicable industry or self-regulatory standards.
 - (c) "AT 101" shall mean the Attestation Standards (AT) Section 101, Attest Engagements, issued by the American Institute of Certified Public Accountants (AICPA), which establishes a framework for attest engagements and outlines general attestation standards, including examples of examination reports and review reports.
 - (d) "Company Personnel" shall mean the employees, Subcontractors, individual independent contractors, agents, and other representatives of Company and its Subcontractors who perform any Services.
 - (e) "Data Security Breach" shall mean (i) any breach of security resulting in (A) unauthorized or accidental loss, alteration, disclosure, access, acquisition of, or destruction of Abbott Data; (B) compromise, intrusion, interference with; or (C) unauthorized access to information, networks, systems, databases, servers, or electronic or other media and/or other information assets or information systems on which Abbott Data is stored, collected, or used or from which Abbott Data may be accessed, including those of a Company agent or Subcontractor; and/or (ii) other circumstance that actually compromises, is reasonably suspected of compromising, or could compromise, (A) the privacy, data security, confidentiality, availability, resiliency, or (B) the integrity of any Abbott Data or the proper functioning of the network resources or systems of Abbott.
 - (f) "Government Authority" shall mean a legislature, executive, administrative or regulatory entity, judicial body, supervisory authority, or other public agency or authority of any country, state, territory, international or multinational governmental entity (e.g., the European Union), or of any political subdivision of a country, state, territory, international or multinational governmental entity, or a person or entity acting under a grant of authority from, or under contract with, such public agency or authority, that is authorized by law to enforce individual rights with respect to Personal Information, or to oversee or monitor compliance with Applicable Law relating to privacy, data protection, or data security.
 - (g) "Ordering Document" shall mean an Order Form, Statement of Work, purchase order, Companion Agreement, or other similar document which describes the Services to be performed by Company for the benefit of Abbott under the Agreement.
 - (h) "SOC 1 Report" shall mean an independent auditor's systems and organization controls (SOC) 1 type II report on the suitability of the design, and operating effectiveness of a service organization's controls relevant to its financial reporting, issued under SSAE 18 (or its replacement).
 - (i) "SOC 2 Report" shall mean an independent auditor's systems and organization controls (SOC) 2 type II report on the suitability of the design, and operating effectiveness of a service organization's non-financial controls relevant to security, availability, processing integrity, confidentiality, and privacy, issued under AT 101 and SSAE 18 (or their replacements).
 - (j) "SSAE 18" shall mean the Statement on Standards for Attestation Engagements (SSAE) No. 18, Reporting on Controls at a Service Organization, issued by the American Institute of Certified Public Accountants (AICPA).
 - (k) "Subcontractor" (including "Sub-processor") shall mean any third party, including Company Affiliates, utilized by Company to Process Abbott Data for, or on behalf of, Abbott.
4. Security Requirements, Audits, and Records.
 - (a) Company represents and warrants to Abbott that:
 - (i) Company has in place, and shall maintain, a comprehensive written information data security program that: (A) complies with Applicable Law(s), (B) is reviewed on an annual basis or upon a material change in Company's business practices to test the key controls, systems and procedures of its Data Security Practices (defined below) to ensure that they are

properly implemented and effective in addressing applicable threats and risks, and (C) identifies a person within Company's senior management who has responsibility for privacy, data protection, and data security matters; and

- (ii) the information provided by Company in any Vendor Assessment is true, accurate, and complete.
- (b) During the Term, and until the return or secure destruction of Abbott Data that Company obtained in connection with the Agreement, Company shall implement and maintain appropriate organizational, administrative, technical, and physical security safeguards and other security measures required by the Agreement (including this Data Security Exhibit) and Applicable Law(s) to protect Abbott Data against any unauthorized access, acquisition, disclosure or interference by third parties and to ensure the ongoing confidentiality, integrity, availability, and resilience of Company's systems (collectively, "Data Security Practices").
- (c) Company shall implement and maintain standard operating procedures or work guidelines that govern Company's safeguarding of Abbott Data and a program to monitor compliance with, and to enforce, such procedures or guidelines. Company shall at all times during the Term remain in compliance with the requirements of International Standards Organization (ISO) 27001 (as such may be amended, restated, extended, or otherwise superseded from time to time) and shall, upon Abbott's written request (email acceptable), provide Abbott with copies of its current ISO 27001 certification and its annual ISO 27001 certification renewals (as applicable). Company shall remain, and shall ensure that its Subcontractors remain, at all times aware of changes to ISO 27001 and implement any changes as are necessary to remain in compliance with such requirements. In the event any security audit identifies that Company is not compliant with such provisions, Company shall implement a procedure for promptly correcting any such noncompliance and provide Abbott with assurance satisfactory to Abbott that any such noncompliance shall not recur.
- (d) Upon Abbott's written request (email acceptable), Company shall issue to Abbott:
 - (i) a SOC 1 Report and/or a SOC 2 Report, and any successor standards or updated versions thereof, as appropriate, for all Company and Subcontractor locations and all systems used by Company and Subcontractors in the delivery of Services and/or Processing of Abbott Data during the previous calendar year ("Reporting Period"); and
 - (ii) as further described in SSAE 18 and AT 101 (as applicable), a written assertion from Company management stating whether in all materials respects, and based on suitable criteria: (A) the description of Company's systems included within such SOC 1 Report and/or SOC 2 Report fairly present Company's systems that were designed and implemented throughout the applicable Reporting Period; (B) the controls related to the control objectives stated in the description of Company's systems were suitably designed throughout the applicable Reporting Period to achieve such control objectives; and (C) such controls operated effectively throughout the applicable Reporting Period to achieve such control objectives.
- (e) Company shall promptly remediate any weakness or deficiency that has been reflected in any SOC 1 Report and/or SOC 2 Report.
- (f) Upon reasonable prior written notice from Abbott, Company shall provide (or cause to be provided) to Abbott, its representatives, designees, agents, auditors (internal or external) and Government Authorities, each as Abbott may designate (collectively, the "Abbott Auditors"), access to (i) systems used to provide the Services and Company locations at or from which Services are provided; (ii) Company Personnel; and (iii) all data, books, logs, records and other documentation and information in any media relating to the Services for the purpose of performing audits, inspections and examinations of Company (and for the purposes of this **Section 4(f)**, a reference to Company shall also include a reference to Company's Affiliates, Subcontractors, agents and representatives), in order to verify the integrity of Abbott Data and Company's compliance with the data protection, security, record retention and destruction, and confidentiality requirements set forth in the Agreement (including this Data Security Exhibit), and to verify that Company has adequate policies, procedures, safeguards and controls in place to protect the security of Abbott Data.
- (g) In connection with any audit by any Abbott Auditor, Company shall provide Abbott and the Abbott Auditor with access to and any assistance that they may reasonably require with respect to Company, the Company locations and the systems used for the Services for the purpose of performing audits, inspections, and examinations. Audits shall be conducted during Company's business hours and upon reasonable notice to Company except in the case of audits by a Government Authority, emergency or security audits, and audits investigating claims of illegal behavior. Company shall assist and cooperate fully with Abbott and Abbott Auditors as reasonably required to carry out the audits, including providing use of Company locations, facilities, and resources.
- (h) If any audit reveals that Company has not complied with the data security terms contained in the Agreement (including this Data Security Exhibit), Company shall promptly prepare a plan reasonably acceptable to Abbott to correct the applicable failure(s) and upon Abbott's acceptance of such plan, will promptly implement such plan.
- (i) In addition to the requirements set forth above, Company shall also protect Abbott Data against unauthorized access, acquisition, disclosure, or interference by third parties through, without limitation:
 - (i) secure authentication and user access management, restrict access to authorized users based on least privilege and/or defined roles and permissions; restrict access to all physical and digital copies of Abbott Data solely to Abbott and Company Personnel (as permitted under the Agreement) who have a need-to-know and who are obligated by a written confidentiality agreement;
 - (ii) technical security measures to guard against unauthorized access to Abbott Data that is being transmitted over an electronic communications network, including a mechanism with an industry standard encryption algorithm to encrypt

electronic information based on the type of Abbott Data involved, such as while in transit or in storage on networks or systems to which unauthorized individuals may have access. At a minimum, Company's encryption shall meet validated cryptography standards as specified by the National Institute of Standards and Technology in FIPS140-2 and subsequent security requirements guidelines;

- (iii) input controls, data loss prevention tools, audit trails, event logging, and robust monitoring of networks, systems, devices, and databases to enable Company (A) to detect any access, use, disclosure, or removal of Abbott Data, and/or Processing of Abbott Data by unauthorized persons or for unauthorized purposes and (B) to record and analyze whether, how, and by whom Abbott Data was accessed, used, disclosed, altered, removed and/or destroyed; security logs shall be protected and monitored for anomalies, and upon request, Company shall make such logs available to Abbott and shall retain such logs for at least one hundred eighty (180) days;
 - (iv) a comprehensive risk management program, including but not limited to, regular tests, assessments, and evaluations of risks to the data security, privacy, and confidentiality of Abbott Data and the effectiveness of the implemented safeguards. Such tests, assessments, and evaluations shall include vulnerability threat assessments and penetration tests from reputable third party vendors;
 - (v) up-to-date network data security measures, including (A) firewall protection, including firewalls that restrict access to Company's local area network and production servers, (B) operating system and software upgrades, data security updates, and patches, which will be tested and implemented promptly, (C) commercially reasonable, reputable, and up-to-date virus protection, and (D) perimeter data security controls reasonably designed to maintain the security and integrity of all Abbott Data, including two factor authentication for remote login access (including VPN and other forms of access); and
 - (vi) industry-standard best practices and any measures required by Applicable Law(s) for secure disposal of Abbott Data and any paper documents, electronic equipment, or other electronic media that contain Abbott Data, including secure removal or overwriting of data before equipment or electronic media is reused.
- (j) Company shall maintain, and update at least annually, policies and procedures to detect, respond to and otherwise address security incidents, which comply in all respects with Applicable Law(s) and industry best practices.
 - (k) Company's unauthorized Processing or failure to implement and maintain the data security measures set forth in the Agreement (including this Data Security Exhibit), including, without limitation, any requirement for Company to remediate data security deficiencies identified by, or on behalf of, Abbott in a Vendor Assessment or otherwise, shall be deemed a material breach of the Agreement by Company, and Abbott may immediately terminate the Agreement or an Ordering Document notwithstanding the lack of prior written notice as may be required in the Agreement. Abbott will retain all other rights under the Agreement or otherwise.

5. Data Security Breach.

- (a) Company shall immediately, and in any event within twenty-four (24) hours, notify Abbott in writing at cybersecurity@abbott.com after becoming aware of any Data Security Breach that may involve Abbott Data.
- (b) Upon becoming aware of a Data Security Breach, Company shall provide a summary report of the Data Security Breach, with sufficient detail to enable Abbott to comply with Applicable Law(s), which shall include at least the following:
 - (i) a brief description of the contractual relationship between Abbott and Company sufficient to relay the nature of the Services Company provides to Abbott;
 - (ii) the date, time, and description (including root cause) of the Data Security Breach;
 - (iii) how the Data Security Breach was detected;
 - (iv) the systems and Abbott Data affected;
 - (v) whether the Data Security Breach included Personal Information;
 - (vi) a list of all Abbott Data disclosed as a result of the Data Security Breach;
 - (vii) any corrective action taken;
 - (viii) any additional planned or required corrective actions; and
 - (ix) identify a point of contact at Company for any Abbott inquiry regarding the Data Security Breach.
- (c) In addition to the requirements set forth in **Section 5(b)**, Company shall have the following obligations in the event of any Data Security Breach. The written notification required under **Section 5(b)** shall explain the nature, scope, and impact of such Data Security Breach upon Abbott Data and the potential adverse effects on any data subjects whose Personal Information may be affected by such Data Security Breach. If the Data Security Breach included Personal Information, such notice will also provide the categories and approximate number of data subjects and records containing Personal Information concerned, along with the names and contact information, to the extent known, of any data subjects impacted by the Data Security Breach. In no case shall Company delay notification because of insufficient information. Instead, notifications shall be provided and supplemented as information becomes available to Company.
- (d) In the event of any Data Security Breach, Company shall also: (i) promptly investigate, and fully cooperate with Abbott in connection with the investigation of, such Data Security Breach, understanding that time is of the essence, (ii) cooperate

with Abbott to the extent Abbott determines it is necessary to conduct its own investigation, (iii) unless required by Applicable Law(s), not make any public announcements or notifications to any Government Authority, any potentially affected data subject or entity, or other third party without Abbott's prior written approval, (iv) cooperate fully with Abbott regarding any such notification, and (v) take all necessary and appropriate corrective action to prevent reoccurrence. If the Data Security Breach included Personal Information, Company shall reimburse Abbott for all internal and external costs incurred by Abbott associated with addressing and responding to a Data Security Breach, including, without limitation: (A) providing notice to all persons whose Personal Information may have been affected by such Data Security Breach, whether or not such notice is required by Applicable Law(s), (B) establishing a toll-free telephone number where affected persons may receive information, and (C) providing credit monitoring/repair and/or identity restoration/insurance for affected persons for one (1) year (or such other time period as may be required by Applicable Law(s) or a Government Authority) following the announcement or disclosure of the Data Security Breach or following notice to the affected persons, whichever is later. Without limiting the foregoing, Abbott shall make the final decision on notifying (including the contents of such notice) Abbott's customers, employees, service providers and/or the general public of such Data Security Breach, and the implementation of the remediation plan.

6. Company Personnel.

- (a) Company shall, where legally permissible, and to the extent reasonably requested by Abbott, complete a comprehensive background investigation on all employees before providing access to Abbott Data, including verification of the identity, address, employment history/eligibility, professional qualifications of any member of Company's team and performing additional checks such as drug screening or criminal records (where available).
- (b) Company shall have a formal policy on conditions and timelines for access to Abbott or Company systems to be given to individuals joining, changed for individuals moving to different roles, and removed for those individuals leaving for any reason.
- (c) Company shall ensure all Company Personnel access is terminated when such Company Personnel no longer require access to Abbott Data, information systems, or network connectivity, as applicable.
- (d) Company shall ensure that all Company Personnel who handle Abbott Data are informed of the confidential nature of Abbott Data and have undertaken appropriate training regarding their obligations in connection with their handling of Abbott Data including Applicable Law(s), potential security or breach reporting obligations and acceptable use of and proper procedures for storing and transmitting Abbott Data. Company shall maintain records of this training and will make those records available to Abbott upon request.

7. Physical Security. Company shall:

- (a) ensure that all systems used to Process Abbott Data will be in secure, monitored, and access controlled premises;
- (b) ensure all systems used to Process Abbott Data will be in secure hosted facilities with access limited and restricted to authorized individuals only;
- (c) ensure that all Abbott Data shall be Processed in geographies that provide an adequate legal framework to ensure compliance with the terms and conditions of the Agreement;
- (d) monitor and record, for audit purposes, access to the physical facilities hosting Abbott Data intended for use by multiple users, including the name of the employee, time and date of entry and exit, and where feasible, monitor the room by camera; and
- (e) not store or maintain Abbott Data on any portable device or on any other form of removable or transportable media without Abbott's prior written approval.

8. Subcontractors. Company shall not disclose or transfer Abbott Data to any third party without Abbott's express written consent except where such disclosure, or transfer is:

- (a) to a Subcontractor, provided that, prior to such disclosure, the Subcontractor has (i) been approved in writing by Abbott and (ii) entered into a written agreement with Company that requires Subcontractor to comply with security terms substantially similar to the security obligations as those imposed on Company under the Agreement (including this Data Security Exhibit). Company shall take ongoing steps to confirm that Subcontractors comply with their obligations and Company shall be responsible and liable for the acts and omissions of its Subcontractors; or
- (b) required by Applicable Law(s) or Government Authority, in which case Company shall, except where prohibited by Applicable Law(s), notify Abbott promptly in writing prior to complying with the disclosure request. Company shall provide such notice to Abbott within ten (10) days of receipt of a disclosure request, or within such shorter time as necessary to provide Abbott with reasonable time to oppose the disclosure request. If Abbott is unable, or chooses not to oppose the disclosure request, Company shall comply with all lawful directions of Abbott, limit the nature and scope of the requested disclosure, disclose the minimum Abbott Data necessary to comply with Applicable Law(s), and upon Abbott's request, cooperate fully with Abbott in resisting the disclosure request to the fullest extent permitted by Applicable Law(s).

9. Business Continuity and Disaster Recovery.

- (a) Company shall implement and maintain appropriate availability controls, emergency action plans and redundancy measures to ensure service continuity, security, and confidentiality to Abbott consistent with the Agreement and restore normal operating procedures as promptly as possible in the event of a major disruption, business interruption or failure, including,

without limitation, a Force Majeure Event (as that term is defined in **Section 23** (Force Majeure) of the Terms and Conditions) ("BC/DR Plans").

- (b) Company shall maintain documented disaster recovery procedures, including regular data backup as agreed by Abbott and Company in the Agreement or Ordering Document, to be executed in case of any event that renders the facilities used to provide Services unavailable.
- (c) Upon Abbott's request, Company shall provide an executive summary of the BC/DR Plans.
- (d) Company shall test the BC/DR Plans periodically, and in any event at least annually, and provide Abbott with the result of its most recent BC/DR Plans tests. In the event such testing identifies a deficiency in the BC/DR Plans, Company shall promptly remediate such deficiency and update the BC/DR Plans accordingly.

10. Retention and Return of Abbott Data.

- (a) Company shall, and shall cause its Subcontractors to, retain Abbott Data, including, but not limited to, Personal Information made available by, or collected on behalf of, Abbott for only as long as is necessary to provide the Services, as requested by Abbott in writing, or as required by Applicable Law(s).
- (b) Company shall, at no additional charge and consistent with Abbott's directions, promptly return (to Abbott or its designee in a non-proprietary format and on the media reasonably specified by Abbott) or securely destroy all Abbott Data in Company's possession or under its control including, but not limited to, Personal Information, that Company obtained in connection with the Agreement, including all originals and copies of such Abbott Data in any medium, and any materials derived from, or incorporating, such Abbott Data, upon the earlier of thirty (30) days after (i) Abbott's written request for such return, deletion, or destruction for any reason, or (ii) the termination or expiration of the Agreement or an Ordering Document, following Company's notification to Abbott of such pending action and Abbott's confirmation of its directions. Company shall promptly notify Abbott in writing once all such Abbott Data has been returned, deleted, or destroyed.
- (c) Company shall remove all Abbott Data from any media taken out of service and shall destroy or securely erase media using industry-standard best practices and any measures required by Applicable Law(s). If Company disposes of any paper or electronic record containing Abbott Data, Company shall take all reasonable steps to destroy the information by (i) shredding, (ii) permanently erasing and deleting, or (iii) overwriting records to make it unreadable, un-constructible and indecipherable through any means. If requested by Abbott, Company shall provide a certificate of disposal, signed by an authorized representative of Company, certifying that all copies of Abbott Data in Company's possession or under Company's Subcontractors' control have been destroyed or securely erased.

11. Abbott-Owned or Provided Devices.

- (a) Where Abbott issues to Company (i) Abbott electronic devices such as laptops, desktop computers, mobile phones, and tablets, (ii) Abbott virtual machines, and/or (iii) Abbott Active Directory or email accounts, Company may not Process Abbott Data in systems or devices with non-Abbott-managed devices or infrastructure unless expressly authorized by Abbott in writing.
- (b) Company shall return all Abbott-owned or -provided devices (including authentication devices) as soon as practicable, but in no event more than fifteen (15) days after the sooner of: (i) expiration or termination of the Agreement; (ii) Abbott's request for the return of such devices; or (iii) the date when Company no longer requires such devices in order to provide the Services.

12. Access to Abbott Systems.

- (a) Except as specifically contemplated in the Agreement, Company agrees that it will not and will not allow any Company Personnel or other third party acting at its direction to: (i) attempt unauthorized access to Abbott systems or tamper with, compromise or circumvent any security or audit measures employed by Abbott; (ii) make any changes to Abbott systems or input, delete or otherwise modify any data contained therein; or (iii) access, or attempt to access, any third-party networks or systems from Abbott systems except as necessary for the performance of the Services.
- (b) Abbott may issue Company Personnel (i) a login ID, password, or other authentication credential such as a digital certificate, token, smartcard, or biometric device; or (ii) an Abbott facility identification card or other physical security access or permission (collectively, "Credentials"), as necessary to perform the Services. Company agrees that it is responsible for the actions of any individuals using Credentials issued to Company Personnel. Company acknowledges that such Credentials constitute Abbott's Confidential Information. Company shall notify Abbott in advance if any Company Personnel will no longer require their Credentials (due to termination, reassignment, or any other reason) to allow Abbott to deactivate or invalidate that individual's Credentials.

13. Indemnification. Notwithstanding any other provision in the Agreement (including, without limitation, any warranty, financial cap, disclaimer of special/consequential damages or any other limitation or disclaimer of liability), Company shall defend, indemnify and hold harmless Abbott Indemnitees from and against any and all costs, charges, damages, expenses, fees (including, without limitation, reasonable attorneys' fees), and losses (including, without limitation, fees and costs incurred in recovering the same), incurred by any Abbott Indemnified Party related to or arising from (a) a breach of any provision of this Data Security Exhibit by Company or a Subcontractor or (b) a Data Security Breach.

14. Survival. The obligations of confidentiality and data security under this Data Security Exhibit will survive the termination and/or expiration of the Agreement, including any Ordering Document thereunder, for as long as Company Processes Abbott Data. In

addition, all remedies available to the Parties under this Data Security Exhibit or Applicable Law(s) shall survive the termination or expiration of the Agreement.

15. Cardholder Data. If Company is Processing payment card transactions or any other payment card data for or on behalf of Abbott: (i) Company is responsible for protecting credit and debit card account numbers and all information related to any cardholder or payment card ("Cardholder Data") that Company (A) obtains from or Processes for, or on behalf of, Abbott or (B) Processes for the purpose of fulfilling its obligations under the Agreement, (ii) Company represents and warrants that Company is and shall remain compliant with the Payment Card Industry Security Standards Council (the "PCI DSS Standards") or any other applicable payment card security standards, (iii) Company and its Subcontractors are responsible for any costs associated with maintaining compliance with the PCI DSS Standards, including providing Abbott with any attestation or reporting on compliance with such standards, (iv) Company shall provide a valid PCI attestation of compliance to Abbott (via email to PCI@abbott.com) on an annual basis which describes the scope and services assessed, signed by a certified Qualified Security Assessor under the standards set by the PCI Security Standards Council, and (v) Company warrants that upon the expiration or termination of the Agreement and each applicable Ordering Document, Company shall promptly remove, or cause its Subcontractors to promptly remove, any Cardholder Data from the applicable systems in accordance with the required process under PCI DSS Standards or other applicable standards. In the event of a Data Security Breach potentially or actually affecting Cardholder Data, then in addition to complying with its other obligations under the Agreement and this Data Security Exhibit, Company shall provide access to its premises, books, logs, records, networks, storage media, servers, and other network resources to Abbott, any Abbott designee, or a designee of American Express, Discover, JCB International, MasterCard, and Visa Inc., as designated by Abbott, in order to investigate the incident and validate Company's compliance with the PCI DSS Standards.

**SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 3 – SAMPLE SUBSCRIPTION SERVICES ORDER FORM**

[NOTE: Please choose one of the introductory paragraphs below:

Option 1 - SOW entered into by Abbott Main Contracting Entity.

Option 2 - SOW entered into by another Abbott Affiliate when there is an existing valid contract in place without a Companion Agreement

Option 3 - SOW entered into by another Abbott Affiliate together with a valid and executed Companion Agreement.]

[Option 1:] This Order Form No. Insert # is issued under the Software as a Service Subscription Agreement with an effective date of Insert Agreement Effective Date (the “Agreement”) between Insert Abbott Main Contracting Entity (“Abbott”) and Insert Company Name (“Company”). This Order Form, as amended, modified, or supplemented, includes the terms and conditions of the Agreement, which are incorporated by this reference. In the event of any conflict in terms between the Agreement and this Order Form, the Agreement shall prevail unless otherwise expressly stated in this Order Form.

[Option 2:] This Order Form No. Insert # between Insert Abbott Affiliate Entity Name (“Abbott Affiliate”) and Insert Company Name (“Company”) is issued under the Software as a Service Subscription Agreement with an effective date of Insert Agreement Effective Date (the “Agreement”) between Insert Abbott Main Contracting Entity (“Abbott”) and Insert Company Name (“Company”). This Order Form, as amended, modified, or supplemented, includes the terms and conditions of the Agreement, which are incorporated by this reference. In the event of any conflict in terms between the Agreement and this Order Form, the Agreement shall prevail unless otherwise expressly stated in this Order Form. **[If Option 2 is adopted, please amend the reference of “Abbott” to “Abbott Affiliate” throughout the Order Form. Aforesaid amendment shall also apply to the Company Affiliate if the Order Form is entered by a Company Affiliate.]**

[Option 3:] This Order Form No. Insert # is issued under the Companion Agreement with an effective date of Insert Companion Agreement Effective Date (the “Companion Agreement”) between Insert Abbott Affiliate Entity Name (“Abbott Affiliate”) and Insert Company Name (“Company”). This Order Form, as amended, modified, or supplemented, includes the terms and conditions of the Companion Agreement, which are incorporated by this reference. In the event of any conflict in terms between the Companion Agreement and this Order Form, the Companion Agreement shall prevail unless otherwise expressly stated in this Order Form. **[If Option 3 is adopted, please amend the reference of “Abbott” to “Abbott Affiliate” throughout the Order Form. Aforesaid amendment shall also apply to the Company Affiliate if the Order Form is entered by a Company Affiliate.]**

Application Platform Name:	
Project Name:	
Company Name:	
Hosting Provider Name:	
Subscription Services Start Date:	
Subscription Services End Date:	
Hosting Location(s) (i.e., location of data center(s)). Include location(s) for primary and backup (failover location(s)):	
Personal Information Data Type(s) (e.g., name, email address, age, salary details, IP address, etc.):	
Categories of Data Subjects (e.g., customers, employees, patients, health care professionals, suppliers, etc.):	
Special Categories of Personal Information (e.g., racial or ethnic origin, religious beliefs, genetic data, health data, etc.)	
Origination of Personal Information (list the country(ies) of origin of the Personal Information):	
Destination of Personal Information (list the country(ies) the Personal Information goes to or may be accessed from):	
Duration (detail the duration of the Processing of Personal Information):	
Abbott Project Manager:	Add Name, Email and Phone #
Abbott Global Procurement Contact:	Add Name, Email and Phone #
Company Project Manager:	Add Name, Email and Phone #
Company Contact:	Add Name, Email and Phone #
Company Technical Contact:	Add Name, Email and Phone #

- Subscription Services Term. The Subscription Services Term of this Order Form shall be Insert Date, 20__ through Insert Date, 20__, subject to termination as provided in the Terms and Conditions.
- Subscription Services. If applicable, add description of Subscription Services, including name of application site to be hosted. In addition to the specific terms and conditions set forth below, the add application site name site shall be subject to the terms and conditions set forth in the Agreement.
- Scope. Company's Subscription Services and/or Professional Services shall support the following Abbott business elements:
Add business elements to be supported.
- Users. If applicable, add number of Users and relevant terms related to User accounts.

5. Professional Services. Add a detailed description of any Professional Services to be provided by Company.
6. Acceptance Testing. If applicable, add acceptance criteria, acceptance testing period, and Abbott remedies if Subscription Services are not accepted by Abbott.
7. Documentation. On or within five (5) days before the scheduled delivery date, Company shall deliver to Abbott one (1) copy of all generally available Documentation sufficient to enable Abbott personnel and others to use and to fully understand the use and operations of the Subscription Services. Abbott may copy the Documentation in order to satisfy its own internal requirements or may request Company to furnish additional copies at Company's current standard prices, less any applicable discounts.
8. Approved Subcontractors.

Approved Subcontractor Name	Subscription Services Provided	Subscription Services Location

9. Payment Schedule and Process.

	List Price	Abbott's Discounted Price
Subscription Fees:	\$	\$

10. Third Party Service. If applicable, add name(s) of any Third Party Service(s) that may be accessed by or through the Application Platform, and the location of the applicable governing terms and conditions for each Third Party Service.
11. Mobile Applications. If applicable, add name and description of Mobile Application Software to be provided by Company.
12. Artificial Intelligence. If applicable, add name and description of approved AI to be used by Company or incorporated into the Services (including any Software, Updates, and/or Deliverables).
13. Support Desk. Company will maintain a 24x7 support desk with a toll-free number for the purpose of answering questions regarding use of the Subscription Services locations for the following countries: Add applicable countries. Company shall also provide multilingual telephone support, to include, at a minimum, support in English and add additional languages required, at no additional charge.
14. Additional Service Levels and Security Requirements. Company shall meet or exceed the service levels set forth in the Subscription Service Level Agreement and security requirements set forth in the Agreement, and as may be more fully described in this Order Form. If applicable, add additional SLAs and/or security requirements.

NOTE: The legal commitment of funds from Abbott for this Order Form is only conveyed by the issuance of a fully executed Abbott Purchase Order. Signatures on this document do not authorize commencement of chargeable work for this project.

Reviewed and approved for content, charges and expenses.

ABBOTT CONTRACTING ENTITY

Signature: SAMPLE – NOT FOR SIGNATURE

Printed Name: _____

Title: _____

Date: _____

COMPANY CONTRACTING ENTITY

Signature: SAMPLE – NOT FOR SIGNATURE

Printed Name: _____

Title: _____

Date: _____

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 4A –SUPPORT SERVICES

1. Subscription Service Level Agreement. This Subscription Service Level Agreement (“SLA”) consists of **Exhibit 4A** (Support Services) and **Exhibit 4B** (Service Level Agreement) and forms a part of the Agreement. All defined terms in this SLA shall have the same meaning as ascribed in the Terms and Conditions except as specifically identified to the contrary in this SLA. Effective on the Subscription Services Start Date, Company shall provide the Subscription Services to Abbott in accordance with the service levels set forth in this **Exhibit 4A**.
2. Architecture generality

Company provides Mono tenant SAAS Application hosted, administered & secured by Company's team.

Patches, support, monitoring, and capacity planning are included in the subscription. No hidden costs, Company takes care of everything.

Description:

Stack	Description
Application	Application Configuration, Update, Identity & access management User Lifecycle Management Spend optimization
Data	Management of DataBase environment, Backup and Disaster Recovery Plan. Data base restauration
Runtime	Management of all the intermediary stack between application and servers that enable a software program to be executed on a computer system.
Middleware	Ensure of connectivity, homogeneity, interoperability of all SaaS platform.
O/S	Management of Operating system by patching, update according to our security policy and software requirement. Management of Automation of upgrades and configurations. This means that FM configures the cloud management platform, controls, and initiates the automation.
Virtualization	Provisioning Processing resource requests, creating templates, and configuring VMs. Securing Securing and monitoring systems, identifying issues, and validating user access. Exploitation Retiring or reclaiming unused or underused physical resources, investigating bugs, and projecting future needs. Scaling Monitor and automate virtual resources to face off activity Pics by horizontal and vertical capacity improvement.
Servers	Management of capacity planning according to our cloud provider
Storage	Monitoring, provisioning of storage Capacity in order to anticipate the evolution of Abbott need.
Network	Data Network Administration, Management and Operations Company network management systems use software and cloud services to continuously collect and analyze data and push configuration changes to improve performance, reliability, and security. Continuous monitoring is based on: 1) Aggregating diverse data.
	Combining data from multiple sources generated by different products/vendors in real time. 2) Maintaining real-time awareness. Use real-time dashboards to identify and track statistics and attacks. Use real- time alerts for anomalies and system changes.

Security	Least privileged Access File security Threat protection Incident response Denial-Of-Service Plan Global Threat Monitoring
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Company works with a Public Cloud Partner called AWS to host Company's application for Abbott. This partnership allow Company to cover multiple location all over the world.

The choice of the partner depends on the national or international positions of Abbott. Depending on the regions available between the two suppliers.

(a) AWS location:

The AWS Cloud spans 81 Availability Zones within 25 geographic regions around the world, with announced plans for 24 more Availability Zones and 8 more AWS Regions in Australia, India, Indonesia, Israel, New Zealand, Spain, Switzerland, and United Arab Emirates (UAE).

(b) Data Location

Company has access to different datacenters around the world to be closer to Abbott and offer the best experience with Company.

This also lets Abbott have their data in a region that will preserve data privacy. Once Abbott environments have been created in a specific region, Abbott's data will stay there.

For protection purpose, Company can replicate the backups in another datacenter of the same region (same city or a city nearby).

Architecture is based on the regions and Availability Zones (AZ) hosting principle, to give Company the ability to operate production applications and databases that are more highly available, fault tolerant, and scalable than would be possible from a single data center.

All AZs in a Region are interconnected with high-bandwidth, low-latency networking, over fully redundant, dedicated metro fiber providing high-throughput, low-latency networking between AZs.

In fact:

- All traffic between AZs is encrypted.
- The network performance is sufficient to accomplish synchronous replication between AZs.
- AZs make partitioning applications for high availability easy.

Regions are used to operate Company's Disaster Recovery Plan, based on asynchronous replication between the main Datacenter (data source) and the second Datacenter (repository).

This means that the data is replicated on the second datacenter in dedicated repository storage to lower the impact in the event of a major disaster in the main datacenter. The switch to the secondary datacenter is automatic (see below the point iii) Disaster Recovery Plan).

(c) Architecture scheme

The architecture of the environments is structured by regions and availability zones.

Abbott commercial sites (EMEA, APAC, ME, Latin Americas) will be covered by the nearest AWS regions. And within these AWS regions, availability zones will be created to host Abbott environments.

(d) Disaster Recovery Plan (DRP)

In Company's Standard Cloud offer, Company's application is hosted on a primary datacenter and backup on a dedicated server in a secondary datacenter.

If a hardware / zone failure occurs in the primary datacenter, as the servers are configured in high availability clusters on different availability zone, there should only be a minor impact on the service. The load would be automatically transfer on another node in availability zone.

To prevent major disaster that can impact an entire datacenter, we use a backup server on a secondary site. Thus, the application server is replicated every day and the Oracle database server every 4 hours. This allows us to guarantee the following Recovery Point Objective (RPO) and Recovery Time Objective (RTO):

	RPO	RTO
Application Server	24 Hours	4 Hours
Database Server	4 Hours	4 Hours

Description of the DRP

- The use of two datacenters, one primary and one secondary.
- The equipment is redundant in each of the datacenters: on the primary, it is active and on the secondary, it is passive*;
- The implementation of redundancy and synchronization of data and applications on the datacenters**;
- Manual switchover of production to the secondary datacenter in the event of unavailability or an incident in the primary datacenter;
- Restoration of the impacted production within the contractually defined timeframe.
- DRP is tested Twice a year

* Redundancy on the secondary site can be in degraded mode or not.

** Subject to technological constraints depending on the application used.

The DRP workflow is the following:

1. Company detects the Disaster
2. The Company's team diagnoses the issue and the severity
3. If the issue can be resolved quickly then the service is restarted in the Primary Site otherwise the hosting company triggers the DRP procedure and informs Company.
4. Company informs Abbott
5. Company restores the environments and databases on the Secondary Site
6. Company verifies that the service is available from a user point of view (portal, applications, SFTP...)
7. Company informs Abbott that the service is back.

Incident Management

- Incident and alarm
- In the event of production disruption, Company will convene a crisis committee to decide whether to activate the Business Continuity Plan. This committee includes members of Company and Abbott teams. Triggering
 - o When the decision to activate the plan is made, the Company team switches Abbott production to the healthy site. A series of tests is then performed to verify that the level of service has been restored.
- Recovery
 - o The Company teams will restore services on the affected site as soon as possible. Once the operation has been completed, Company will contact Abbott to schedule the switchover to the initial state.

Contractual commitments

The use of the DRP is defined by two contractual objectives adapted to Abbott needs and the requirements of Abbott activities.

The RTO (Recovery Time Objective) / DMIA (Maximum Allowable Interruption Duration): defines the maximum allowable interruption duration for Abbott services and applications.

The RPO (Recovery Point Objective) / PDMA (Maximum Allowable Data Loss): defines the maximum duration of data recording that is acceptable to lose during an outage.

(e) Backup Policy

Company back up the database (type of backup RMAN) on another storage to be able to restore a previous state in case of misuse of the application (e.g. a user has integrated wrong data or deleted important data). It is then possible to restore the database to any save point.

In case of major issue, if the server cannot restart properly, Company would restore the most recent backup. The restoration of another specific backup can be done on demand.

In case of a data recovery need, Company is able to provide a full back up or a individual schema backup. Full backups are performed at regular intervals as well as dumps to isolate individual database schemas to allow faster retrieval of specific data.

Each instance will be backed up every day. Each instance can be restored individually. The name of the backup should contain the name of the instance.

(f) Scalability /Application performance

Application performance

Company chooses the servers with a view to offering the best performance when running the Company's application.

Company is committed to sizing an environment that fits Abbott's project requirements in term of users, database size, application complexity, etc. Company's engineering team will set up the environment that will offer the best of the FuturMaster application with no constraint on Abbott's side.

Please note that Company don't set up shared environments for their customers.

Each customer environment has its own specific resources (VCPU, VRAM...) so Company can distinctly monitor performance issues. Company doesn't use CPU/RAM over commitment in the infrastructure so Abbott can enjoy all the resources that are allocated to Abbott's environments.

System scalability

Abbott's implemented application and business requirements may change over time, FuturMaster Cloud Services will assist Abbott to reassess the needs and adjust Abbott's environments to fit Abbott's requirements.

Company have the flexibility to scale up and down Abbott environments (provided that Abbott past the commitment period).

Company doesn't over allocate the server resources and the servers are not saturated so that Company are not impacted if Company need to scale up some environments.

Company can increase the capacity of the existing servers (Scale up) and set up more servers (Scale Out) as Abbott business grows to efficiently manage Company's infrastructure and capacity planning.

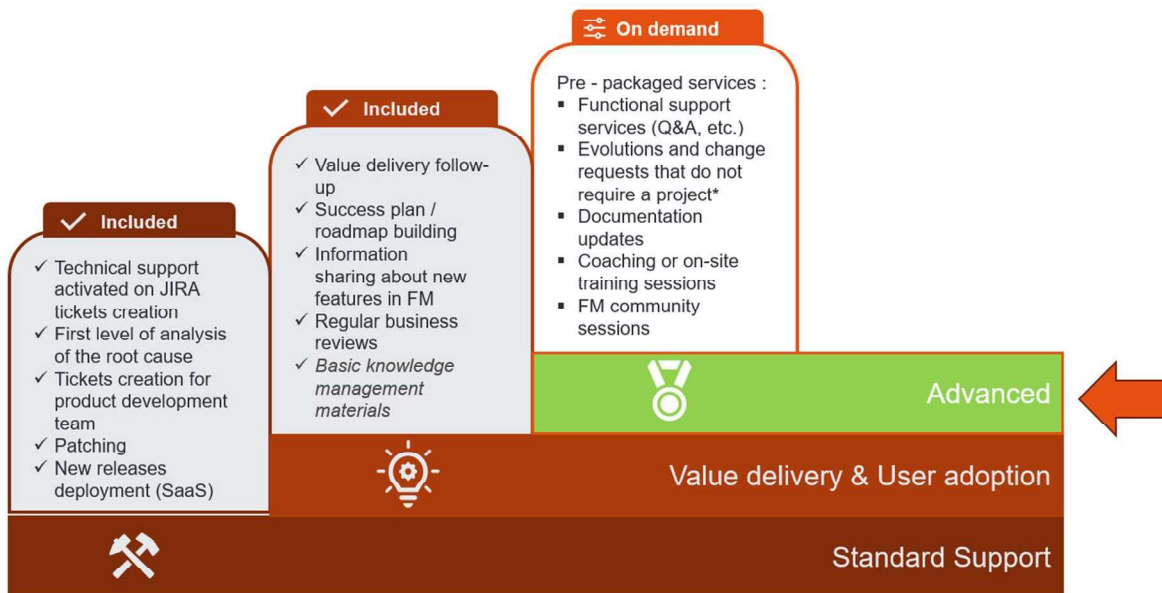
Alert will be raised, based on the threshold up to 80% (server, storage) reached based on one single Instance.

3. Support

Company provides three distinct categories of support services in connection with the SaaS solution:

- > Technical Support,
- > Infrastructure Support, and
- > Functional Support. (Customer success experience)

Both Technical and Infrastructure Support are included in the SaaS Subscription Services and delivered according to the service levels defined in the SLA



(a) SOFTWARE TECHNICAL SUPPORT

Definitions

"Anomaly": any error in the design, or realization, or programming of the Software Package that prevents the normal use of all or part of the Software Package or causes an incorrect result or action while the Software Package is used in accordance with the instructions.

- > "Blocking anomaly": Anomaly making it impossible for users to use one or more essential features of the Software Package.
- > "Major Anomaly ": an Anomaly causing limitations or restrictions in the use of one or more essential functions of one or more files of the Software Package.
- > "Minor Anomaly ": an Anomaly without significant impact on the use of the Software Package and/or Adaptations.

Object

The purpose of this Software Technical Support Description is to determine the conditions under which Company will provide Abbott with the Software Package corrective support services included in the Service, described below.

The scope of corrective maintenance

As part of the corrective support, Company takes care of the correction of Anomalies of any kind of the Software Package.

Abbott undertakes to communicate to Company a description of the Anomaly sufficiently detailed to allow it to reproduce it in its own environments.

For each Anomaly, Abbott will send Company, by e-mail, a description of the Anomaly encountered. After classification of the Anomaly thus described by Abbott, Company undertakes to ensure its correction remotely.

For Anomalies seriously disrupting the organization of Abbott or likely to jeopardize Abbott's operation in the very short term, Company will propose, if possible and necessary, a temporary workaround pending the final correction.

Abbott will be able to obtain information on the progress of the processing of the request as part of the Procedure for the correction of Anomalies. As such, Company undertakes to provide the status of the treatment of the Anomaly, the next steps planned and the name of the person in charge of monitoring the treatment of the Anomaly in its organization as well as a reminder of the actions and information expected from Abbott.

Exclusion from the scope of patch support:

The corrective maintenance service does not include:

- > modifications and corrections affecting the Configuration and Specific Developments;
- > interventions on software other than the Software Package and in particular the Operating System;
- > any troubleshooting or intervention on the Infrastructure
- > more generally, any incident that does not prove to be an Anomaly of the Software Package;
- > any on-site intervention.

Software Support intervention times:

Company's Software Support service is available every working day from Monday to Friday, except on public holidays, from 9am to 12pm and from 2pm to 6pm. Company reserves the right to modify its schedules and will notify Abbott of its new time slots, by any means at its convenience.

Support response time

Futurmaster Software Availability					
		Average speed to Answer		Resolution Plan	
Priority level	Description	Business Hours	Out off Business hours	Resolution time Correction or Workaround	Final Correction in case of workaround
Critical	Total unavailability	15 mins	30 mins	4 hrs	1 day
Degraded operation	Degraded performance of SaaS	15 mins	1 hr	48 hrs	3 days
Minimal impact*	All other SaaS related topics	30 mins	30 days	7 days	15 days

In case of exceeding the aforementioned deadlines, Company shall pay Abbott penalties for late intervention (hereinafter designated: Penalties for late intervention) calculated as follows:

$$P = R * J / 500$$

R is the amount of the last Annual Service Fee paid to Company's;

J corresponding to the number of days of late working from receipt of the formal notice sent by Abbott.

Late Response Penalties describe in Exhibit 4B.

Obligations of Abbott

The proper performance of Support services by Company requires Abbott to comply with the following obligations:

- > knowledge of the use of the Service through the practice of the training courses offered to Abbott in the installation of the system;
- > compliance with the rules of use of the Service, in particular those relating to the successful completion of the programs;
- > the Abbott's cooperation in maintenance operations;
- > record in a register all anomalies in the operation of the Software Package.

Abbott shall designate from among its staff two contact persons responsible ("Abbott Contact Persons") for the permanent relationship with Company.

(b) Infrastructure Support

Company monitor the Application and Environment by various software solution. Monitoring is made 24/7 on 3 elements to ensure the Instances availability

- > Network / Hardware / virtualization stack
- > Operating systems
- > Servers (application, DB, FTP RDWEB)

• Network / Hardware / virtualization stack	• Operating systems	• Servers (application, DB, FTP RDWEB)
---	---------------------	--

Includes power and bandwidth supply, Network, Disk, Server/VM reboots monitoring and operational maintenance.	Management tasks cover the scope of the operating system (OS); in this case Company is accountable for the administration of OS, Runtime, and middleware	Management tasks cover standard software tools as software servers (http, ftp...), Data base management systems, application servers, etc.
---	--	--

Company monitor the availability and performance of the following infrastructure and middleware elements:

Scope of actions	Detail
Real-time monitoring of infrastructure operations	The supervision of the infrastructures will be ensured via various software systems whose measurements are sent back to the technical services at least every 5 minutes.
Infrastructure availability	Uptime availability - ICMP test (Ping)
Capacity monitoring	- RAM consumption / Swap - CPU consumption - Disk space consumption - DB health check including DB Structure, Integrity Check, Check for image block consistency, Check for logical consistency by carrying out an Undo Integrity Check. Detection of inconsistencies in the system performance. - Perform a Security Check - Monitor and optimize the use of database space (Proactive tablespace management (PTM)) - Review alert logs and trace files.

Response times for SaaS services tickets :

		Average speed to Answer		RTO	RPO
Priority level	Description	Business Hours	Out off Business hours		
A-Critical (P1)	Total unavailability	15 mins	30 mins	4 h (or workaround)*	24h
B-Degraded operation (P2)	Degraded performance of SaaS	15 mins	1 h	8 h (or workaround)	24h
C-Minimal impact (P3)	All other SaaS related topics	30 mins	2 h	24 h	24hr

(c) Customer success experience support

Customer success support, which includes guidance on business processes, application usage, change request, functional process analysis, is not included in the SaaS subscription. This service is subject to additional fees as described in the Order Form:

Scope of support:

- > Functional support services (Q&A, etc.)
- > Evolutions and change requests that do not require a project*
- > Documentation updates

- > Coaching or on-site training sessions
- > FM community sessions

Activation period:

Customer Success Support will commence immediately following the end of the Hypercare period.

M	M+1	M+2	M+3	M+4	M+5	M+6	M+7	M+8	M+9	M+10	M+11	M+12	M+13
Phase 1 Core + PH					Go live	Hypercare			Phase 2				
									Customer success support				

Resolution plan:

The Customer service experience of Futurmaster is available to Abbott on business days, from Monday to Friday, between 9:00 AM and 6:00 PM Singapore time, excluding public holidays in Singapore.

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 4B – SERVICE LEVEL AGREEMENT

1. Service Level Agreement. Effective on the Subscription Services Start Date, Company shall provide the Application Platform to Abbott in accordance with the service levels set forth in this **Exhibit 4B**.

2. Service Level Agreement (SLA) specifications

(a) Core principles

The core principles applied to define and measure Key Performance Indicators (KPI) are the following:

- > A Key Performance Indicator (KPI) can be either “Critical”, “Key” or “Standard”
- > Only Critical and Key KPIs are subject to Service Credits in case they are not met
- > Standard KPIs are not subject to Service Credits
- > Non-achievement of Critical or Key SLA will generate Service credits that are described in paragraph 3
- > If for a particular month Abbott decides not to apply a Service Credit after a period of one (1) year and informs Company of this decision in writing (including by email), then, Abbott cannot come back on its decision retroactively. For the sake of clarity, only Abbott Contract Executive as identified in the Order Form can validly elect not to apply Service Credit.

(b) Event of Default

The failure by Company to achieve critical Key performance indicator(s) shall be deemed an event of default, as defined in paragraph 3.d

(c) SLA activation and revision

SLAs are activated as soon as the Service is activated. Service Credits will start to apply 3 months after the pilot go-live. The SLAs can be revised every year or at any time after common agreement between the Parties.

(d) Improvement plan

In case a SLA target is not reached, Company shall propose an improvement plan to reach the target within the next month after the measurement was done.

(e) Service credits computations

Service Credits computations are detailed in paragraph 3

(f) Description of the Key Performance Indicators

Each Service Level Key Performance Indicator will be described by the following items:

- > Name of the indicator,
- > Definition and purpose,
- > The type of indicator (Critical, Key or Standard),
- > The target values, % or threshold of tolerance,
- > For Critical and Key KPIs, the service credit calculation should be defined by a threshold or an unreach target,
- > The measurement frequency and measurement period
- > The mode of measurement (automatic or manual) and measurement tool to be used,
- > The method of calculation of the KPI.

(g) Exclusions

Any SLA failure due to one of the following event shall be excluded from Company performance measurement:

- > Interruptions or maintenance planned by common agreement between Abbott and Company
- > In the case of Force Majeure as defined in the Agreement.
- > Those exclusively due to the non-respect of Abbott obligations as defined in the Agreement.

- A failure or malfunction exclusively due to a weakness of Abbott infrastructure or architecture design affecting the performance of Services, in circumstances where Company has informed Abbott of such issue and Abbott has confirmed the issue and not taken the relevant action to cure the issue as per a jointly defined action plan.

3. Service level agreement – Key performance indicators description

(a) Support access & Ticket submission

Abbott's Qualified Individuals will have 24/7 access to a dedicated Self-Service Support Portal for the purposes of reporting tickets related to Software and SaaS services, and receive responses and solutions from Company.

All interactions concerning technical support will be in English language.

By means of the Self-Service Support Portal, Abbott's Qualified Individual(s) will have the possibility to notify errors or service unavailability by submitting requests of support ("Tickets"), related to the SaaS services and the Software and assign to each Ticket the related Priority.

The technical support tickets submitted by User for malfunctions are classified as described below: Priority	SaaS Services	Software
A – Critical (P1)	Total unavailability of SaaS Examples: (1) Service cannot be accessed due to lack of connectivity in Company's infrastructure (excluding Internet and Abbott's hardware, software, or other equipment); (2) Application service not in a running state, preventing User(s) access to the Software. (3) Unavailability of the data transfer system to receive or send data. (4) <i>Downgraded performance for prolonged period of time(>2hrs) during planning cycles</i>	The reported issue renders the Software inoperative or causes the Software to fail catastrophically. Examples: (1) crashes of the calculation of the statistical forecast, potentially compromising the entire forecast validation cycle. (2) crashes of the forecast collaboration page, preventing User(s) from entering inputs and adjustments during the forecasting process; (3) Downgraded performance for prolonged period of time(>2hrs) during planning cycle
B - Degraded Operations (P2)	Degraded performance of SaaS Example: (1) Temporary performance slowdown caused by failures in the hardware or software supporting the service or by unplanned increase of data volumes. (2) Batch, Interactive do not comply with the response performance of reference (RPR)	The reported issue substantially degrades the performance of the Software or materially restricts Abbott's Use of the Software Examples: (1) crashes of the procedure for the automatic creation of proposals, potentially compromising the replenishment monitoring process. (2) alert reports are not functioning (3) errors in the import procedures that inhibit the refresh of database (4) Output errors attributable to software functionality
C - Minimal Impact (P3)	All other SaaS related topics. Example: (1) SaaS services not related to operations of the production environment (2) Password resets (3) Request for alignments of test and development environments	The reported issue causes only a minor impact and does not substantially restrict Abbott's Use of the Software. Examples: (1) malfunctioning of the filtering functionality. (2) erroneous data visualization or report export, not affecting consistency of results (e.g., wrong descriptions in reports, export in xls format does not work, etc.); (3) Enhancements to any functionalities not impacting system performance

Most SaaS non-availability issues will be automatically detected by Company's monitoring systems, and Company will take initiatives to resolve them, independently from the submission of the ticket by Abbott's Qualified Individual(s).

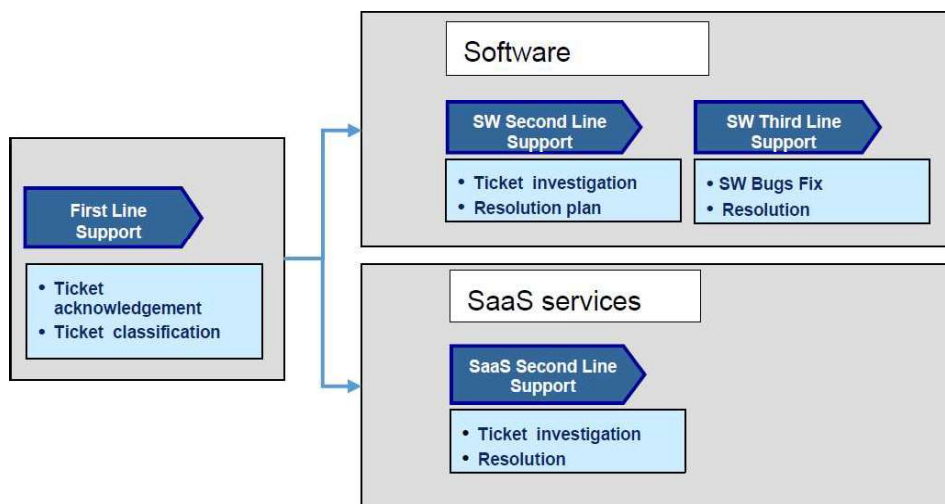
The priority of a ticket is initially entered by the Qualified Individual, but may be changed by Company if: (a) the reported priority does not correspond to the applicable definition above; (b) the Qualified Individual fails to provide promptly any clarification or information required by Company to complete its investigation; (c) a workaround is made available to overcome or mitigate the effect of the issue; or (d) Company preliminarily determines that the reported issue is not an Error (SW) or it is not a SaaS failure. The Company will notify the Qualified Individual of any such change.

If Company determines that the reported issue is not in its domain (not an error (SW) and not a SaaS failure), Abbott may nevertheless ask for support by Company in the resolution of such issue.

In this case, Abbott shall compensate Company, at Company's then current standard consulting rates, for all work connected to such support with prior concurrence from Abbott business owner

(b) Ticket Resolution

Company's organization for technical support services is described in Figure below.



(c) First Line Support

First Line Support is the front-end support function that acknowledges all incoming tickets and executes the first screening. Depending on the level of complexity, First Line Support will either: (i) resolve the ticket directly, providing appropriate instructions to the Qualified Individual; or (ii) escalate the ticket to the appropriate Second Line Support, updating the ticket accordingly. In the event that Qualified Individual disagrees with the provided resolution and does not consider the ticket to be resolved a new ticket can be opened and/or the issue can be escalated to the Qualified Person.

(d) Second Line Support – SaaS Services Tickets

SaaS Second Line Support is involved in all tickets that cannot be addressed directly by First Line Support, taking the following steps:

- Investigation: Company will investigate the root cause of the issue, interacting - if necessary - with the Qualified Individual and with the other parties involved in the Service (Cloud/Hosting Provider), in order to determine the action plan for resolution
- Resolution: Company will execute the action plan, provide the solution, notify the Qualified Individual and close the ticket after common agreement between Company and Abbott. In the event that Qualified Individual disagrees with the provided resolution and does not consider the ticket to be resolved a new ticket can be opened and/or the issue can be escalated to the Qualified Person.

The time period for validation (measured by the ticketing tool) by the qualified individual is not taken into account for the calculation of the SL

(e) Second Line Support – Software Tickets

Software Second Line Support is involved in all tickets that cannot be addressed directly by First Line Support, taking the following steps:

- > Investigation: Company will investigate on the root cause of the issue and interact -if necessary-with the Qualified Individual to gather all the information useful to reproduce the error.
- > Classification: based on the result of the investigation, Company will determine whether the issue arises from (A) a system error, to be fixed by Company, or (B) training issue on the use of software to be corrected by providing appropriate advice to the Qualified Individual.
- > Resolution Plan: for any issue confirmed to be an Error, Company will inform the Qualified Individual of an action plan, including a committed date for its resolution (a "Resolution Plan"). Company is committed to provide such "Resolution Plan", within a predefined time from ticket submission, depending on the priority level of the request (see table below) Second Line Support and the Qualified Individual may agree on a change of priority (downgrading of the ticket) if a workaround is available that mitigates the issue for the period needed to resolve the Error, in which ticket the Resolution Plan will be amended accordingly.
- > Resolution: Company will deliver the solution and notify the Qualified Individual, as follows: for P1 and P2 issue, a patch that fixes the Error; for P3 issue, commercially reasonable efforts to include the Error correction in the next regular Update or leave it in the backlog based on the agreement with Abbott

4. Service Level Agreement for Service availability

The Service Availability is calculated as follows (calculation by Instance):

Company guarantees Service availability at 99,5%, measured by the following rule:

% achieved = [Number of hours where the Service were available during the period for the Instance] / [Number of hour during the period for the Instance]*

Performance (less or equal / greater)	Service Credits
99,49%> IA> 99,40%	1% of the monthly Service Fee
99,39%> IA> 99,30%	5% of the monthly Service Fee
99,29%> IA> 99,20%	10% of the monthly Service Fee
99,19%> IA> 99%	20% of the monthly Service Fee

This Credit Fees will be calculated every month by Instance with a maximum limit of 2 month revenue for Company during a year. (calendar year will be used), representing 17% of the annual fee.

*The period of unavailability shall be calculated from the earlier point between:

- > the period from Abbott and/or its supplier(s) notifying Company that the SaaS service is inaccessible for Abbott,
- > the automated detection performed by Company

And it ends until such condition is remedied.

For clarity, SLA is not applicable (i) during periods of scheduled maintenance; and/or (ii) during any period of suspension of Service by Company in accordance with the terms of the Agreement. Company shall make all commercially reasonable efforts to schedule maintenance during non-peak hours and minimize any such downtime. Company shall give Abbott at least ten (10) calendar days of written notice of any planned maintenance that is expected to result in downtime. Planned downtime shall be provisioned along with Abbott outside of business-critical periods. Any maintenance operation that has not been communicated towards Abbott shall not be considered as a scheduled maintenance.

(a) Problem Management

Ensures that Company is publishing a Root Cause Analysis (RCA) shortly after the opening of a problem.

(b) Material and repetitive non-achievement of the Service Levels

Abbott may terminate the applicable Order Form for cause if Company fails to meet the Uptime Guarantee during three (3) consecutive months or four (4) times in any rolling twelve (12) month period. Such a termination will be treated as a termination under **Section 18** (Term and Termination) of the Terms and Conditions notwithstanding the lack of thirty (30) days' prior written notice, and Abbott will retain all other rights under the Agreement or otherwise, including receiving Termination Assistance Services as described in **Section 19** (Termination Assistance Services) of the Terms and Conditions.

(c) Exclusions

This Exhibit is subject to the limitations and exclusions set forth in the Agreement. Additionally, technical support hereunder does not include: (a) consulting or training on how to make the best use of the Software; (b) resolution of errors, defects or failures in hardware, networks or Third Party Software imposed by Abbott; (c) software customization and integration; (d) consulting in general; (e) resolution of issues resulting from a breach by Abbott of the RACI set forth in Exhibit "Quality Assurance Plan" of the Agreement alterations to the Software performed by 3rd Parties on behalf of Abbott.

(d) However, in any of the above mentioned situation, Company will collaborate whenever its contribution is required. The first level of contribution will be activated through Company Support department. For a contribution outside for the Support scope of work, such a contribution may be subject to additional workload charged to Abbott, with Abbott's acknowledgement, at reasonable efforts, based on the conditions described in the Agreement between the Parties.

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 5 – ALTERNATIVE DISPUTE RESOLUTION

Any dispute arising out of or in connection with this Agreement, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration in Singapore administered by the Singapore International Arbitration Centre in accordance with the Arbitration Rules of the Singapore International Arbitration Centre for the time being in force, which rules are deemed to be incorporated by reference in this Exhibit.

The seat of the arbitration shall be Singapore. The Tribunal shall consist of one (1) arbitrator. The arbitration shall be conducted in the English language.

**SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 6 – FORM OF COMPANION AGREEMENT**

This Companion Agreement (“Companion Agreement”) dated as of **Insert Companion Agreement Effective Date** (“Companion Agreement Effective Date”) is entered into by and between **Insert name of Abbott Affiliate(s)** (“Abbott Affiliate”) and **Insert Company Name** (“Company”) [Note: If Affiliate of Company, replace (“Company”) with (“Company Affiliate”) throughout this Companion Agreement].

WHEREAS, **insert Abbott contracting entity name**, a company incorporated in **[country]** (“Abbott”) and **insert Company name**, a company incorporated in **[country]** (“Company”) are parties to a Software as a Service Subscription Agreement dated **Insert SaaS Subscription Agreement Effective Date**, as amended from time to time (collectively, the “Agreement”);

WHEREAS, Abbott Affiliate is an Affiliate of Abbott **[and Company Affiliate is an Affiliate of Company]**;

WHEREAS, Company **[Affiliate]** recognizes that the Agreement is intended to allow Abbott’s Affiliates to enter into one or more Order Forms regarding the Subscription Services and, if applicable, Professional Services, from time to time, under the terms of the Agreement; and

WHEREAS, Abbott Affiliate and Company **[Affiliate]** desire to enter into this Companion Agreement with respect to the Subscription Services and, if applicable, Professional Services that will be provided by the Company **[Affiliate]** to Abbott Affiliate in **[Country]** pursuant to one or more Order Forms;

NOW, THEREFORE, Abbott Affiliate and Company **[Affiliate]** (collectively, the “Parties” and each, a “Party” for purposes of this Companion Agreement) agree as follows:

1. **Term.** The term of this Companion Agreement shall commence as of the Companion Agreement Effective Date and continue until any expiration or termination of the Agreement, unless terminated earlier in accordance with the provisions of the Agreement. Notwithstanding anything to the contrary in the Agreement, this Companion Agreement may be terminated independently of the Agreement.
2. **Incorporation.** The terms and conditions of the Agreement are hereby incorporated into this Companion Agreement by reference and shall apply as though the Parties were original signatories to the Agreement, subject to any express modifications or exclusions set forth in this Companion Agreement.
3. **Definitions.** Capitalized terms used and not defined herein have the meanings set forth in the Agreement. The defined terms used to identify the respective Parties in the Agreement shall for the purpose of this Companion Agreement be replaced by the defined terms used to identify the Parties to this Companion Agreement (unless the context dictates otherwise).
4. **Changes to Agreement.**
 - (a) For the purpose of this Companion Agreement, the Parties hereby agree to amend the Agreement as follows: **[Insert local business terms and any specific changes to the Agreement]**
 - (b) Nothing set forth in this Companion Agreement shall, in any manner, be construed as altering the terms and conditions of the Agreement, other than as expressly set forth in this Companion Agreement or as required by Applicable Law(s) of the applicable territory of this Companion Agreement.
5. **Notices.** Notwithstanding the Notice section of the Agreement, any notices required or permitted under this Companion Agreement shall be sent in accordance with the Agreement, at the address below.

If to [Company or Company Affiliate]:

Insert Name
Insert Address
Phone: Insert #

with a copy to:

Insert Name
Insert Address
Phone: Insert #

If to [Abbott Affiliate]:

Insert Name
Insert Title
Insert Dept. and Building
Phone: Insert #

with a copy to:

Insert Name
Insert Title
Insert Dept. and Building
Phone: Insert #

Each of the Parties has caused this Companion Agreement to be executed by its duly authorized representative.

INSERT ABBOTT AFFILIATE ENTITY NAME

Signature: _____

Printed Name: _____

Title: _____

Date: _____

INSERT COMPANY OR COMPANY AFFILIATE NAME

Signature: _____

Printed Name: _____

Title: _____

Date: _____

**SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 7 - SAMPLE STATEMENT OF WORK ("SOW")**

[NOTE: Please choose one of the introductory paragraphs below:

Option 1 - SOW entered into by Abbott Main Contracting Entity.

Option 2 - SOW entered into by another Abbott Affiliate when there is an existing valid contract in place without a Companion Agreement

Option 3 - SOW entered into by another Abbott Affiliate together with a valid and executed Companion Agreement.]

[Option 1:] This SOW No. Insert SOW # is issued under the Software as a Services Subscription Agreement with an effective date of Insert Agreement Effective Date (the "Agreement") between Insert Abbott Main Contracting Entity ("Abbott") and Insert Company Name ("Company"). This SOW is effective as of the last date of signature below. This SOW, as amended, modified, or supplemented, includes the terms and conditions of the Agreement, which are incorporated by this reference. In the event of any conflict in terms between the Agreement and this SOW, the Agreement shall prevail unless otherwise expressly stated in this SOW.

[Option 2:] This SOW No. Insert SOW # between Insert another Abbott Affiliate Entity Name ("Abbott Affiliate") and Insert Company Name ("Company") is issued under the Software as a Services Subscription Agreement with an effective date of Insert Agreement Effective Date (the "Agreement") between Insert Abbott Main Contracting Entity ("Abbott") and Insert Company Name ("Company"). This SOW is effective as of the last date of signature below. This SOW, as amended, modified, or supplemented, includes the terms and conditions of the Agreement, which are incorporated by this reference. In the event of any conflict in terms between the Agreement and this SOW, the Agreement shall prevail unless otherwise expressly stated in this SOW. **[If Option 2 is adopted, please amend the reference of "Abbott" to "Abbott Affiliate" throughout the SOW. Aforesaid amendment shall also apply to the Company Affiliate if the SOW is entered by a Company Affiliate.]**

[Option 3:] This SOW No. Insert SOW # is issued under the Companion Agreement with an effective date of Insert Companion Agreement Effective Date (the "Agreement") between Insert another Abbott Affiliate Entity Name ("Abbott Affiliate") and Insert Company Name ("Company"). This SOW is effective as of the last date of signature below. This SOW, as amended, modified, or supplemented, includes the terms and conditions of the Companion Agreement, which are incorporated by this reference. In the event of any conflict in terms between the Companion Agreement and this SOW, the Companion Agreement shall prevail unless otherwise expressly stated in this SOW. **[If Option 3 is adopted, please amend the reference of "Abbott" to "Abbott Affiliate" throughout the SOW. Aforesaid amendment shall also apply to the Company Affiliate if the SOW is entered by a Company Affiliate.]**

Project Name:	
Program (e.g. name of the Service/Application involved):	
Abbott Project Manager:	Add Name, Email and Phone #
Company Project Manager:	Add Name, Email and Phone #
Company Project Executive:	Add Name, Email and Phone #
Project Costs:	
Total Fee:	
Travel and expense Fee: (Actual/Not to exceed)	
Project total dollars:	
Project type (fixed bid / time & materials, not to exceed):	
Cost Center:	
Department Number:	
WBS number:	
Abbott Global Procurement Contact:	Add Name, Email and Phone #
Start Date:	
End Date:	
Abbott IT Program Director:	Add Name, Email and Phone #
Company Technical Contact:	Add Name, Email and Phone #
Work Location(s):	
Hosting Location(s) (e.g. location of data center(s)). Include location(s) for primary and backup (failover location(s)):	
Data Subjects (e.g. customers, employees, patients, health care professionals, suppliers etc.):	

Data Type (type of Personal Information to be Processed): (e.g. name, email address, age, salary details, IP address, etc.)	
Data Origination (where geographically the data comes from):	
Data Destination (where geographically the data goes to or can be accessed from):	
Duration (detail the duration of the Processing of Personal Information):	

1. **Project Objective.** Summarize the key points of the project. List goals and objectives.
2. **Scope of Work.** Insert description of scope of work. Define why this project is required and what is required. Indicate if this is a fixed price or time and materials SOW. For time and materials SOW, specify a not to exceed amount in Section 6 (Rates).
3. **List of Applicable Documents.** List other documents relevant to providing/supporting the Deliverables.
4. **Performance Requirements and Deliverables.** Add Abbott and Company performance specifications; who leads; who assists; identify Abbott's and Company's responsibilities and timelines separately; list all Deliverables to be provided. **Also, if the SOW will be performed in phases, make sure to identify each phase of the SOW and include the information below for each phase.**

Key Activities	Deliverables	Company Leads/Assists	Abbott Leads/Assists	Completion date	Acceptance Criteria
					Add detailed specifications, documentation, milestones, etc. that that must be met in order for Company to obtain an Approval Notice for each Deliverable, and collectively, all Deliverables.

5. **Company Key Resources.** Under this SOW, Company shall provide the following key resources as more fully described below.

Key Resource Name / Title	Local, Not Local; Off Site / Onsite

6. **Rates/Experience/Skills/Responsibilities.**

Role	Hourly Rate	Location	Responsibilities Description

7. **Location of Professional Services.** Add locations.
8. **Approved Open Source Software (OSS).** Include all approved OSS to be incorporated into any Deliverable or used by Company in the performance of the Professional Services.

OSS Name	OSS Description	OSS License Terms

9. **Approved Third Party Products.** Include all approved Third Party Products incorporated into any Deliverable or used by Company in the performance of the Professional Services.

Third Party Product Name	Third Party Product Description

10. **Approved Company Pre-Existing Materials.** Include all approved Company Pre-Existing Materials incorporated into any Deliverable or used by Company in the performance of the Professional Services.

Company Pre-Existing Materials Name	Company Pre-Existing Materials Product Description

11. **Approved Subcontractors.** Include a list of all Abbott-approved Subcontractors (including any staff augmentation services providers).

Approved Subcontractor Name	Professional Services Provided	Performance Location

12. **Price and Payment.** Identify price, any incentives, disincentives on the payment schedule.

Milestone / Deliverable	Completion / Acceptance Criteria	Payment Amount (USD)

13. Acceptance Criteria. Add detailed specifications, documentation, milestones, etc that that must be met in order for Company to obtain an Approval Notice for each Deliverable and collectively all Deliverables. For example, include a comprehensive list of all functional criteria, non-functional criteria and performance criteria.
14. Cross-border Transfers of Personal Information. If applicable, and if multiple SOWs will be executed under this Agreement, attach to this SOW prior to execution: Appendix A (Description of Processing and/or Transfer for EU, Switzerland, UK) and, if applicable, Appendix B (UK IDTA) of Exhibit 1 (Data Privacy).
15. Escalation Procedure. The following procedure will be followed if resolution is required to a conflict arising during the performance of this SOW.
- (a) When a conflict arises between Abbott and Company, the project team member(s) will first strive to work out the issue internally.
 - (b) Level 1: If the project team cannot resolve the conflict within two (2) business days, the Abbott Project Manager and the Company Project Manager will meet to resolve the issue.
 - (c) Level 2: If the conflict is not resolved within three (3) business days after being escalated to Level 1, the Abbott Program Leader will meet with the Company Project Executive to resolve the issue.
 - (d) If the conflict is resolved by either Level 1 or Level 2 intervention, the resolution will be addressed in accordance with Change Management Procedure in **Section 16** (Change Orders) below.
 - (e) If the conflict remains unresolved after Level 2 intervention, Abbott may terminate this SOW.
 - (f) During any conflict resolution, Company agrees to provide Professional Services relating to items not in dispute, to the extent practicable pending resolution of the conflict.
16. Change Orders. The Parties may agree to modify the Professional Services through a written change order specifically referencing this SOW and the Agreement. Such change order will become part of the SOW when executed by both Parties, and the services described therein will become part of the Professional Services.

NOTE: The legal commitment of funds from Abbott for this SOW is only conveyed by the issuance of a fully executed Purchase Order. Signatures on this document do not authorize commencement of chargeable work for this SOW.

Reviewed and approved for content, charges, and expenses.

ABBOTT CONTRACTING ENTITY

COMPANY CONTRACTING NAME

Signature: SAMPLE – NOT FOR SIGNATURE

Signature: SAMPLE – NOT FOR SIGNATURE

Printed Name: _____

Printed Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT
EXHIBIT 8 – TRAVEL AND EXPENSE REIMBURSEMENT POLICY

1. Abbott shall, at Abbott's sole discretion, reimburse Company for actual and reasonable out-of-pocket expenses incurred by Company Personnel, provided that such expenses (a) are required to allow Company to perform its obligations under this Agreement and (b) are specifically designated as Abbott reimbursable expenses in the applicable SOW. Such expenses shall be detailed in the SOW and shall not exceed the amount set forth in such SOW. No service charge, overhead or mark-ups shall be applied to any services rendered by a third party. Company shall provide copies of all original receipts for expenses that exceed USD \$25.00.
2. All travel shall be consistent with Abbott's travel guidelines set forth below. Exceptions to the requirements in this **Exhibit 5** must be approved by the Abbott Sponsor in writing in advance of making the travel arrangements:
3. Travel Arrangements. All travel reservations for Company are to be made through an Abbott authorized travel agency by the Abbott Sponsor or delegate. In the event of a rare emergency whereby the Company needs to purchase an airline ticket outside of Abbott's authorized travel agency; post-approval in writing is required by the Abbott Sponsor. Company shall schedule airline travel a minimum of fourteen (14) days in advance of travel.
 - (a) Air Travel.
 - (i) If air travel will be reimbursed by Abbott, actual costs of the airfare shall solely be charged to Abbott without mark-up or other surcharge. Company will fly standard coach/economy class excluding the premium economy seating section on all domestic flights and international flights less than thirteen (13) hours. Company is eligible for business class on international flights over thirteen (13) hours. International flights over thirteen (13) hours are measured from take-off of first flight to landing of final flight uninterrupted by an overnight stay. In cases where outbound and return flights differ in flight duration on a round trip itinerary, only one direction must meet the thirteen-hour rule to qualify for business class. Selection of an itinerary that extends the connecting or layover time only for the purpose of achieving the thirteen-hour trip duration is prohibited.
 - (ii) Travel between the U.S., and Puerto Rico or Canada is considered domestic travel. The lowest logical airfare within eligible class of service will be purchased regardless of the Company's personal airline preferences. In order to obtain the lowest logical airfare non-refundable tickets should be purchased. Connecting flights, alternate routes, airports, dates and/or time should be considered in order to achieve lowest logical airfare. Upgrades are allowed at Company's expense. Use of chartered or private aircraft on Abbott business is prohibited.
 - (b) Ground Travel.
 - (i) When Company uses his/her own vehicle for business, Abbott will reimburse mileage at the current IRS rate if Company is based in the U.S. If the Company is based outside the U.S., Abbott will reimburse the Company based on the Abbott affiliate's mileage rate. Vehicle owners are responsible, and have financial responsibility, for carrying adequate coverage for both themselves and any passengers.
 - (ii) Rental cars may be used only when less expensive transportation is not available or convenient. When Company uses a rental car, Abbott's preferred car rental supplier is to be used where applicable. Abbott's negotiated rates include insurance for rentals in some countries. Insurance coverage varies by country. For the detail of the insurance coverage, verify with Abbott's authorized travel agency or Abbott Sponsor. If rental car charges will be reimbursed by Abbott, actual rental car cost shall be charged to Abbott without mark-up or other surcharge. All actual tolls and parking fees shall be charged to Abbott without mark-up or other surcharge. Parking tickets or traffic fines shall not be reimbursed by Abbott.
 - (c) Lodging. If hotel charges will be reimbursed by Abbott, actual hotel cost shall be charged without mark-up or other surcharge. Charges for unused guaranteed rooms are not reimbursable. An Abbott preferred property or a property that presents as the best overall value including amenities such as Internet, breakfast and shuttle services must be selected. Limited service hotels and standard, single room rates are encouraged whenever possible. Deluxe accommodations may be used only when less expensive accommodations are not available.
 - (d) Meals and Incidentals. Unless approved in advance by Abbott, dining at premium restaurants (i.e., one of the best in a large city) is not authorized. Excess cost of dinners or accommodations at such establishments will not be reimbursed. As permitted by Applicable Law(s), Company will be reimbursed for actual reasonable out-of-pocket meal expenses including gratuities while traveling in order to perform the Professional Services for Abbott. Daily meals shall not exceed USD \$30 per day (or local equivalent) unless otherwise authorized by Abbott.
 - (e) Business Travel Insurance. Business travel insurance shall not be reimbursed by Abbott.
 - (f) Passport/Visa. Cost for processing documentation for international travel, including new and renewed passports and visas shall not be reimbursed by Abbott.
 - (g) Travel Time. Company shall not bill Abbott for travel time.